FICTION

The Papers and Writings of Abraham Lincoln — Volume 3: The Lincoln-Douglas Debates

Lincoln, Abraham

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THE PAPERS AND WRITINGS OF ABRAHAM LINCOLN

VOLUME THREE

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By Abraham Lincoln

Edited by Arthur Brooks Lapsley

THE LINCOLN-DOUGLAS DEBATES I

POLITICAL SPEECHES & DEBATES of LINCOLN WITH DOUGLAS In the Senatorial Campaign of 1858 in Illinois SPEECH AT SPRINGFIELD, JUNE 17, 1858

[The following speech was delivered at Springfield, Ill., at the close of the Republican State Convention held at that time and place, and by which Convention Mr. LINCOLN had been named as their candidate for United States Senator. Mr. DOUGLAS was not present.]

Mr. PRESIDENT AND GENTLEMEN OF THE CONVENTION:--If we could first know where we are, and whither we are tending, we could better judge what to do, and how to do it. We are now far into the fifth year since a policy was initiated with the avowed object and confident promise of putting an end to slavery agitation. Under the operation of that policy, that agitation has not only not ceased, but has constantly augmented. In my opinion, it will not cease until a crisis shall have been reached and passed. "A house divided against itself cannot stand." I believe this government cannot endure permanently half slave and half free. I do not expect the Union to be dissolved; I do not expect the house to fall; but I do expect it will cease to be divided. It will become all one thing, or all the other. Either the opponents of slavery will arrest the further spread of it, and place it where the public mind shall rest in the belief that it is in the course of ultimate extinction, or its advocates will push it forward till it shall become alike lawful in all the States, old as well as new, North as well as South.

Have we no tendency to the latter condition?

Let any one who doubts, carefully contemplate that now almost complete legal combination-piece of machinery, so to speak compounded of the Nebraska doctrine and the Dred Scott decision. Let him consider, not only what work the machinery is adapted to do, and how well adapted, but also let him study the history of its construction, and trace, if he can, or rather fail, if he can, to trace the evidences of design, and concert of action, among its chief architects, from the beginning.

The new year of 1854 found slavery excluded from more than half the States by State Constitutions, and from most of the National territory by Congressional

prohibition. Four days later, commenced the struggle which ended in repealing that Congressional prohibition. This opened all the National territory to slavery, and was the first point gained.

But, so far, Congress only had acted, and an indorsement by the people, real or apparent, was indispensable to save the point already gained, and give chance for more.

This necessity had not been overlooked, but had been provided for, as well as might be, in the notable argument of "squatter sovereignty," otherwise called "sacred right of self-government," which latter phrase, though expressive of the only rightful basis of any government, was so perverted in this attempted use of it as to amount to just this: That if any one man choose to enslave another, no third man shall be allowed to object. That argument was incorporated into the Nebraska Bill itself, in the language which follows:

"It being the true intent and meaning of this Act not to legislate slavery into any Territory or State, nor to exclude it therefrom, but to leave the people thereof perfectly free to form and regulate their domestic institutions in their own way, subject only to the Constitution of the United States."

Then opened the roar of loose declamation in favor of "squatter sovereignty," and "sacred right of self-government." "But," said opposition members, "let us amend the bill so as to expressly declare that the people of the Territory may exclude slavery." "Not we," said the friends of the measure, and down they voted the amendment.

While the Nebraska Bill was passing through Congress, a law case, involving the question of a negro's freedom, by reason of his owner having voluntarily taken him first into a free State, and then into a territory covered by the Congressional Prohibition, and held him as a slave for a long time in each, was passing through the United States Circuit Court for the District of Missouri; and both Nebraska Bill and lawsuit were brought to a decision in the same month of May, 1854. The negro's name was "Dred Scott," which name now designates the decision finally made in the case. Before the then next Presidential election, the law case came to, and was argued in, the Supreme Court of the United States; but the decision of it was deferred until after the election. Still, before the election, Senator Trumbull, on the floor of the Senate, requested the leading advocate of the Nebraska Bill to state his opinion whether the people of a territory can constitutionally exclude slavery from their limits; and the latter answers: "That is a question for the Supreme Court."

The election came. Mr. Buchanan was elected, and the indorsement, such as it was, secured. That was the second point gained. The indorsement, however, fell short of a clear popular majority by nearly four hundred thousand votes,(approximately 10% of the vote) and so, perhaps, was not overwhelmingly reliable and satisfactory. The outgoing President, in his last annual message, as impressively as possible echoed back upon the people the weight and authority of the indorsement. The Supreme Court met again, did not announce their decision, but ordered a reargument. The Presidential inauguration came, and still no decision of the court; but the incoming President, in his inaugural address, fervently exhorted the people to

abide by the forth-coming decision, whatever it might be. Then, in a few days, came the decision.

The reputed author of the Nebraska Bill finds an early occasion to make a speech at this capital indorsing the Dred Scott decision, and vehemently denouncing all opposition to it. The new President, too, seizes the early occasion of the Silliman letter to indorse and strongly construe that decision, and to express his astonishment that any different view had ever been entertained!

At length a squabble springs up between the President and the author of the Nebraska Bill, on the mere question of fact, whether the Lecompton Constitution was or was not in any just sense made by the people of Kansas; and in that quarrel the latter declares that all he wants is a fair vote for the people, and that he cares not whether slavery be voted down or voted up. I do not understand his declaration, that he cares not whether slavery be voted down or voted up, to be intended by him other than as an apt definition of the policy he would impress upon the public mind,--the principle for which he declares he has suffered so much, and is ready to suffer to the end. And well may he cling to that principle! If he has any parental feeling, well may he cling to it. That principle is the only shred left of his original Nebraska doctrine. Under the Dred Scott decision "squatter sovereignty" squatted out of existence, tumbled down like temporary scaffolding; like the mould at the foundry, served through one blast, and fell back into loose sand; helped to carry an election, and then was kicked to the winds. His late joint struggle with the Republicans, against the Lecompton Constitution, involves nothing of the original Nebraska doctrine. That struggle was made on a point--the right of a people to make their own constitution--upon which he and the Republicans have never differed.

The several points of the Dred Scott decision, in connection with Senator Douglas's "care not" policy, constitute the piece of machinery, in its present state of advancement. This was the third point gained. The working points of that machinery are:

Firstly, That no negro slave, imported as such from Africa, and no descendant of such slave, can ever be a citizen of any State, in the sense of that term as used in the Constitution of the United States. This point is made in order to deprive the negro, in every possible event, of the benefit of that provision of the United States Constitution which declares that "The citizens of each State shall be entitled to all privileges and immunities of citizens in the several States."

Secondly, That, "subject to the Constitution of the United States," neither Congress nor a Territorial Legislature can exclude slavery from any United States Territory. This point is made in order that individual men may fill up the Territories with slaves, without danger of losing them as property, and thus to enhance the chances of permanency to the institution through all the future.

Thirdly, That whether the holding a negro in actual slavery in a free State makes him free, as against the holder, the United States courts will not decide, but will leave to be decided by the courts of any slave State the negro may be forced into by the master. This point is made, not to be pressed immediately; but, if acquiesced in for a

while, and apparently indorsed by the people at an election, then to sustain the logical conclusion that what Dred Scott's master might lawfully do with Dred Scott, in the free State of Illinois, every other master may lawfully do with any other one, or one thousand slaves, in Illinois, or in any other free State.

Auxiliary to all this, and working hand in hand with it, the Nebraska doctrine, or what is left of it, is to educate and mould public opinion, at least Northern public opinion, not to care whether slavery is voted down or voted up. This shows exactly where we now are; and partially, also, wither we are tending.

It will throw additional light on the latter, to go back and run the mind over the string of historical facts already stated. Several things will now appear less dark and mysterious than they did when they were transpiring. The people were to be left "perfectly free," "subject only to the Constitution." What the Constitution had to do with it, outsiders could not then see. Plainly enough now,--it was an exactly fitted niche, for the Dred Scott decision to afterward come in, and declare the perfect freedom of the people to be just no freedom at all. Why was the amendment, expressly declaring the right of the people, voted down? Plainly enough now,--the adoption of it would have spoiled the niche for the Dred Scott decision. Why was the court decision held up? Why even a Senator's individual opinion withheld, till after the Presidential election? Plainly enough now,--the speaking out then would have damaged the "perfectly free" argument upon which the election was to be carried. Why the outgoing President's felicitation on the indorsement? Why the delay of a reargument? Why the incoming President's advance exhortation in favor of the decision? These things look like the cautious patting and petting of a spirited horse preparatory to mounting him, when it is dreaded that he may give the rider a fall. And why the hasty after-indorsement of the decision by the President and others?

We cannot absolutely know that all these exact adaptations are the result of preconcert. But when we see a lot of framed timbers, different portions of which we know have been gotten out at different times and places and by different workmen, Stephen, Franklin, Roger, and James, for instance, and when we see these timbers joined together, and see they exactly make the frame of a house or a mill, all the tenons and mortises exactly fitting, and all the lengths and proportions of the different pieces exactly adapted to their respective places, and not a piece too many or too few,--not omitting even scaffolding,--or, if a single piece be lacking, we see the place in the frame exactly fitted and prepared yet to bring such piece in,--in such a case, we find it impossible not to believe that Stephen and Franklin and Roger and James all understood one another from the beginning, and all worked upon a common plan or draft drawn up before the first blow was struck.

It should not be overlooked that by the Nebraska Bill the people of a State as well as Territory were to be left "perfectly free," "subject only to the Constitution." Why mention a State? They were legislating for Territories, and not for or about States. Certainly the people of a State are and ought to be subject to the Constitution of the United States; but why is mention of this lugged into this merely Territorial law? Why are the people of a Territory and the people of a State therein lumped together, and their relation to the Constitution therefore treated as being precisely the same? While

the opinion of the court, by Chief Justice Taney, in the Dred Scott case, and the separate opinions of all the concurring Judges, expressly declare that the Constitution of the United States neither permits Congress nor a Territorial Legislature to exclude slavery from any United States Territory, they all omit to declare whether or not the same Constitution permits a State, or the people of a State, to exclude it. Possibly, this is a mere omission; but who can be quite sure, if McLean or Curtis had sought to get into the opinion a declaration of unlimited power in the people of a State to exclude slavery from their limits, just as Chase and Mace sought to get such declaration, in behalf of the people of a Territory, into the Nebraska Bill,--I ask, who can be quite sure that it would not have been voted down in the one case as it had been in the other? The nearest approach to the point of declaring the power of a State over slavery is made by Judge Nelson. He approaches it more than once, Using the precise idea, and almost the language, too, of the Nebraska Act. On one occasion, his exact language is, "Except in cases where the power is restrained by the Constitution of the United States, the law of the State is supreme over the subject of slavery within its jurisdiction." In what cases the power of the States is so restrained by the United States Constitution, is left an open question, precisely as the same question, as to the restraint on the power of the Territories, was left open in the Nebraska Act. Put this and that together, and we have another nice little niche, which we may, ere long, see filled with another Supreme Court decision, declaring that the Constitution of the United States does not permit a State to exclude slavery from its limits. And this may especially be expected if the doctrine of "care not whether slavery be voted down or voted up" shall gain upon the public mind sufficiently to give promise that such a decision can be maintained when made.

Such a decision is all that slavery now lacks of being alike lawful in all the States. Welcome or unwelcome, such decision is probably coming, and will soon be upon us, unless the power of the present political dynasty shall be met and overthrown. We shall lie down pleasantly dreaming that the people of Missouri are on the verge of making their State free, and we shall awake to the reality instead that the Supreme Court has made Illinois a slave State. To meet and overthrow the power of that dynasty is the work now before all those who would prevent that consummation. That is what we have to do. How can we best do it?

There are those who denounce us openly to their friends, and yet whisper to us softly that Senator Douglas is the aptest instrument there is with which to effect that object. They wish us to infer all, from the fact that he now has a little quarrel with the present head of the dynasty, and that he has regularly voted with us on a single point, upon which he and we have never differed. They remind us that he is a great man, and that the largest of us are very small ones. Let this be granted. But "a living dog is better than a dead lion." Judge Douglas, if not a dead lion, for this work is at least a caged and toothless one. How can he oppose the advances of slavery? He don't care anything about it. His avowed mission is impressing the "public heart" to care nothing about it. A leading Douglas Democratic newspaper thinks Douglas's superior talent will be needed to resist the revival of the African slave trade. Does Douglas believe an effort to revive that trade is approaching? He has not said so. Does he

really think so? But if it is, how can he resist it? For years he has labored to prove it a sacred right of white men to take negro slaves into the new Territories. Can he possibly show that it is less a sacred right to buy them where they can be bought cheapest? And unquestionably they can be bought cheaper in Africa than in Virginia. He has done all in his power to reduce the whole question of slavery to one of a mere right of property; and, as such, how can he oppose the foreign slave trade, how can he refuse that trade in that "property" shall be "perfectly free,"--unless he does it as a protection to the home production? And as the home producers will probably not ask the protection, he will be wholly without a ground of opposition.

Senator Douglas holds, we know, that a man may rightfully be wiser to-day than he was yesterday; that he may rightfully change when he finds himself wrong. But can we, for that reason, run ahead, and infer that he will make any particular change, of which he himself has given no intimation? Can we safely base our action upon any such vague inference? Now, as ever, I wish not to misrepresent Judge Douglas's position, question his motives, or do aught that can be personally offensive to him. Whenever, if ever, he and we can come together on principle so that our cause may have assistance from his great ability, I hope to have interposed no adventitious obstacles. But clearly he is not now with us; he does not pretend to be,--he does not promise ever to be.

Our cause, then, must be intrusted to, and conducted by, its own undoubted friends,--those whose hands are free, whose hearts are in the work, who do care for the result. Two years ago the Republicans of the nation mustered over thirteen hundred thousand strong. We did this under the single impulse of resistance to a common danger, with every external circumstance against us. Of strange, discordant, and even hostile elements we gathered from the four winds, and formed and fought the battle through, under the constant hot fire of a disciplined, proud, and pampered enemy. Did we brave all then to falter now,--now, when that same enemy is wavering, dissevered, and belligerent? The result is not doubtful. We shall not fail; if we stand firm, we shall not fail. Wise counsels may accelerate, or mistakes delay it, but, sooner or later, the victory is sure to come.

SPEECH AT CHICAGO, JULY 10, 1858.

IN REPLY TO SENATOR DOUGLAS

DELIVERED AT CHICAGO, SATURDAY EVENING, JULY 10, 1858.

(Mr. DOUGLAS WAS NOT PRESENT.)

[Mr. LINCOLN was introduced by C. L. Wilson, Esq., and as he made his appearance he was greeted with a perfect storm of applause. For some moments the enthusiasm continued unabated. At last, when by a wave of his hand partial silence was restored, Mr. LINCOLN said,]

MY FELLOW-CITIZENS:--On yesterday evening, upon the occasion of the reception given to Senator Douglas, I was furnished with a seat very convenient for hearing him, and was otherwise very courteously treated by him and his friends, and for

which I thank him and them. During the course of his remarks my name was mentioned in such a way as, I suppose, renders it at least not improper that I should make some sort of reply to him. I shall not attempt to follow him in the precise order in which he addressed the assembled multitude upon that occasion, though I shall perhaps do so in the main.

There was one question to which he asked the attention of the crowd, which I deem of somewhat less importance--at least of propriety--for me to dwell upon than the others, which he brought in near the close of his speech, and which I think it would not be entirely proper for me to omit attending to, and yet if I were not to give some attention to it now, I should probably forget it altogether. While I am upon this subject, allow me to say that I do not intend to indulge in that inconvenient mode sometimes adopted in public speaking, of reading from documents; but I shall depart from that rule so far as to read a little scrap from his speech, which notices this first topic of which I shall speak,--that is, provided I can find it in the paper:

"I have made up my mind to appeal to the people against the combination that has been made against me; the Republican leaders having formed an alliance, an unholy and unnatural alliance, with a portion of unscrupulous Federal office-holders. I intend to fight that allied army wherever I meet them. I know they deny the alliance; but yet these men who are trying to divide the Democratic party for the purpose of electing a Republican Senator in my place are just as much the agents and tools of the supporters of Mr. Lincoln. Hence I shall deal with this allied army just as the Russians dealt with the Allies at Sebastopol,--that is, the Russians did not stop to inquire, when they fired a broadside, whether it hit an Englishman, a Frenchman, or a Turk. Nor will I stop to inquire, nor shall I hesitate, whether my blows shall hit the Republican leaders or their allies, who are holding the Federal offices, and yet acting in concert with them."

Well, now, gentlemen, is not that very alarming? Just to think of it! right at the outset of his canvass, I, a poor, kind, amiable, intelligent gentleman,--I am to be slain in this way! Why, my friend the Judge is not only, as it turns out, not a dead lion, nor even a living one,--he is the rugged Russian Bear!

But if they will have it--for he says that we deny it--that there is any such alliance, as he says there is,--and I don't propose hanging very much upon this question of veracity,--but if he will have it that there is such an alliance, that the Administration men and we are allied, and we stand in the attitude of English, French, and Turk, he occupying the position of the Russian, in that case I beg that he will indulge us while we barely suggest to him that these allies took Sebastopol.

Gentlemen, only a few more words as to this alliance. For my part, I have to say that whether there be such an alliance depends, so far as I know, upon what may be a right definition of the term alliance. If for the Republican party to see the other great party to which they are opposed divided among themselves, and not try to stop the division, and rather be glad of it,--if that is an alliance, I confess I am in; but if it is meant to be said that the Republicans had formed an alliance going beyond that, by which there is contribution of money or sacrifice of principle on the one side or the

other, so far as the Republican party is concerned,--if there be any such thing, I protest that I neither know anything of it, nor do I believe it. I will, however, say,--as I think this branch of the argument is lugged in,--I would before I leave it state, for the benefit of those concerned, that one of those same Buchanan men did once tell me of an argument that he made for his opposition to Judge Douglas. He said that a friend of our Senator Douglas had been talking to him, and had, among other things, said to him:

"...why, you don't want to beat Douglas?" "Yes," said he, "I do want to beat him, and I will tell you why. I believe his original Nebraska Bill was right in the abstract, but it was wrong in the time that it was brought forward. It was wrong in the application to a Territory in regard to which the question had been settled; it was brought forward at a time when nobody asked him; it was tendered to the South when the South had not asked for it, but when they could not well refuse it; and for this same reason he forced that question upon our party. It has sunk the best men all over the nation, everywhere; and now, when our President, struggling with the difficulties of this man's getting up, has reached the very hardest point to turn in the case, he deserts him and I am for putting him where he will trouble us no more."

Now, gentlemen, that is not my argument; that is not my argument at all. I have only been stating to you the argument of a Buchanan man. You will judge if there is any force in it.

Popular sovereignty! Everlasting popular sovereignty! Let us for a moment inquire into this vast matter of popular sovereignty. What is popular sovereignty? We recollect that at an early period in the history of this struggle there was another name for the same thing,--"squatter sovereignty." It was not exactly popular sovereignty, but squatter sovereignty. What do those terms mean? What do those terms mean when used now? And vast credit is taken by our friend the Judge in regard to his support of it, when he declares the last years of his life have been, and all the future years of his life shall be, devoted to this matter of popular sovereignty. What is it? Why, it is the sovereignty of the people! What was squatter sovereignty? I suppose, if it had any significance at all, it was the right of the people to govern themselves, to be sovereign in their own affairs while they were squatted down in a country not their own, while they had squatted on a Territory that did not belong to them, in the sense that a State belongs to the people who inhabit it, when it belonged to the nation; such right to govern themselves was called "squatter sovereignty."

Now, I wish you to mark: What has become of that squatter sovereignty? what has become of it? Can you get anybody to tell you now that the people of a Territory have any authority to govern themselves, in regard to this mooted question of slavery, before they form a State constitution? No such thing at all; although there is a general running fire, and although there has been a hurrah made in every speech on that side, assuming that policy had given the people of a Territory the right to govern themselves upon this question, yet the point is dodged. To-day it has been decided--no more than a year ago it was decided--by the Supreme Court of the United States, and is insisted upon to-day that the people of a Territory have no right to exclude slavery from a Territory; that if any one man chooses to take slaves into a Territory, all the

rest of the people have no right to keep them out. This being so, and this decision being made one of the points that the Judge approved, and one in the approval of which he says he means to keep me down,--put me down I should not say, for I have never been up,--he says he is in favor of it, and sticks to it, and expects to win his battle on that decision, which says that there is no such thing as squatter sovereignty, but that any one man may take slaves into a Territory, and all the other men in the Territory may be opposed to it, and yet by reason of the Constitution they cannot prohibit it. When that is so, how much is left of this vast matter of squatter sovereignty, I should like to know?

When we get back, we get to the point of the right of the people to make a constitution. Kansas was settled, for example, in 1854. It was a Territory yet, without having formed a constitution, in a very regular way, for three years. All this time negro slavery could be taken in by any few individuals, and by that decision of the Supreme Court, which the Judge approves, all the rest of the people cannot keep it out; but when they come to make a constitution, they may say they will not have slavery. But it is there; they are obliged to tolerate it some way, and all experience shows it will be so, for they will not take the negro slaves and absolutely deprive the owners of them. All experience shows this to be so. All that space of time that runs from the beginning of the settlement of the Territory until there is sufficiency of people to make a State constitution,--all that portion of time popular sovereignty is given up. The seal is absolutely put down upon it by the court decision, and Judge Douglas puts his own upon the top of that; yet he is appealing to the people to give him vast credit for his devotion to popular sovereignty.

Again, when we get to the question of the right of the people to form a State constitution as they please, to form it with slavery or without slavery, if that is anything new, I confess I don't know it. Has there ever been a time when anybody said that any other than the people of a Territory itself should form a constitution? What is now in it that Judge Douglas should have fought several years of his life, and pledge himself to fight all the remaining years of his life for? Can Judge Douglas find anybody on earth that said that anybody else should form a constitution for a people? [A voice, "Yes."] Well, I should like you to name him; I should like to know who he was. [Same voice, "John Calhoun."]

No, sir, I never heard of even John Calhoun saying such a thing. He insisted on the same principle as Judge Douglas; but his mode of applying it, in fact, was wrong. It is enough for my purpose to ask this crowd whenever a Republican said anything against it. They never said anything against it, but they have constantly spoken for it; and whoever will undertake to examine the platform, and the speeches of responsible men of the party, and of irresponsible men, too, if you please, will be unable to find one word from anybody in the Republican ranks opposed to that popular sovereignty which Judge Douglas thinks that he has invented. I suppose that Judge Douglas will claim, in a little while, that he is the inventor of the idea that the people should govern themselves; that nobody ever thought of such a thing until he brought it forward. We do not remember that in that old Declaration of Independence it is said that:

"We hold these truths to be self-evident, that all men are created equal; that they are endowed by their Creator with certain inalienable rights; that among these are life, liberty, and the pursuit of happiness; that to secure these rights, governments are instituted among men, deriving their just powers from the consent of the governed."

There is the origin of popular sovereignty. Who, then, shall come in at this day and claim that he invented it?

The Lecompton Constitution connects itself with this question, for it is in this matter of the Lecompton Constitution that our friend Judge Douglas claims such vast credit. I agree that in opposing the Lecompton Constitution, so far as I can perceive, he was right. I do not deny that at all; and, gentlemen, you will readily see why I could not deny it, even if I wanted to. But I do not wish to; for all the Republicans in the nation opposed it, and they would have opposed it just as much without Judge Douglas's aid as with it. They had all taken ground against it long before he did. Why, the reason that he urges against that constitution I urged against him a year before. I have the printed speech in my hand. The argument that he makes, why that constitution should not be adopted, that the people were not fairly represented nor allowed to vote, I pointed out in a speech a year ago, which I hold in my hand now, that no fair chance was to be given to the people. ["Read it, Read it."] I shall not waste your time by trying to read it. ["Read it, Read it."] Gentlemen, reading from speeches is a very tedious business, particularly for an old man that has to put on spectacles, and more so if the man be so tall that he has to bend over to the light.

A little more, now, as to this matter of popular sovereignty and the Lecompton Constitution. The Lecompton Constitution, as the Judge tells us, was defeated. The defeat of it was a good thing or it was not. He thinks the defeat of it was a good thing, and so do I, and we agree in that. Who defeated it?

[A voice: Judge Douglas.]

Yes, he furnished himself, and if you suppose he controlled the other Democrats that went with him, he furnished three votes; while the Republicans furnished twenty.

That is what he did to defeat it. In the House of Representatives he and his friends furnished some twenty votes, and the Republicans furnished ninety odd. Now, who was it that did the work?

[A voice: Douglas.]

Why, yes, Douglas did it! To be sure he did.

Let us, however, put that proposition another way. The Republicans could not have done it without Judge Douglas. Could he have done it without them? Which could have come the nearest to doing it without the other?

[A voice: Who killed the bill?]

[Another voice: Douglas.]

Ground was taken against it by the Republicans long before Douglas did it. The proportion of opposition to that measure is about five to one.

[A voice: Why don't they come out on it?]

You don't know what you are talking about, my friend. I am quite willing to answer any gentleman in the crowd who asks an intelligent question.

Now, who in all this country has ever found any of our friends of Judge Douglas's way of thinking, and who have acted upon this main question, that has ever thought of uttering a word in behalf of Judge Trumbull?

[A voice: We have.]

I defy you to show a printed resolution passed in a Democratic meeting--I take it upon myself to defy any man to show a printed resolution of a Democratic meeting, large or small--in favor of Judge Trumbull, or any of the five to one Republicans who beat that bill. Everything must be for the Democrats! They did everything, and the five to the one that really did the thing they snub over, and they do not seem to remember that they have an existence upon the face of the earth.

Gentlemen, I fear that I shall become tedious. I leave this branch of the subject to take hold of another. I take up that part of Judge Douglas's speech in which he respectfully attended to me.

Judge Douglas made two points upon my recent speech at Springfield. He says they are to be the issues of this campaign. The first one of these points he bases upon the language in a speech which I delivered at Springfield, which I believe I can quote correctly from memory. I said there that "we are now far into the fifth year since a policy was instituted for the avowed object, and with the confident promise, of putting an end to slavery agitation; under the operation of that policy, that agitation has not only not ceased, but has constantly augmented." "I believe it will not cease until a crisis shall have been reached and passed. 'A house divided against itself cannot stand.' I believe this government cannot endure permanently half slave and half free." "I do not expect the Union to be dissolved,"--I am quoting from my speech, "--I do not expect the house to fall, but I do expect it will cease to be divided. It will become all one thing or all the other. Either the opponents of slavery will arrest the spread of it and place it where the public mind shall rest in the belief that it is in the course of ultimate extinction, or its advocates will push it forward until it shall become alike lawful in all the States, north as well as south."

What is the paragraph? In this paragraph, which I have quoted in your hearing, and to which I ask the attention of all, Judge Douglas thinks he discovers great political heresy. I want your attention particularly to what he has inferred from it. He says I am in favor of making all the States of this Union uniform in all their internal regulations; that in all their domestic concerns I am in favor of making them entirely uniform. He draws this inference from the language I have quoted to you. He says that I am in favor of making war by the North upon the South for the extinction of slavery; that I am also in favor of inviting (as he expresses it) the South to a war upon the North for the purpose of nationalizing slavery. Now, it is singular enough, if you

will carefully read that passage over, that I did not say that I was in favor of anything in it. I only said what I expected would take place. I made a prediction only,--it may have been a foolish one, perhaps. I did not even say that I desired that slavery should be put in course of ultimate extinction. I do say so now, however, so there need be no longer any difficulty about that. It may be written down in the great speech.

Gentlemen, Judge Douglas informed you that this speech of mine was probably carefully prepared. I admit that it was. I am not master of language; I have not a fine education; I am not capable of entering into a disquisition upon dialectics, as I believe you call it; but I do not believe the language I employed bears any such construction as Judge Douglas puts upon it. But I don't care about a quibble in regard to words. I know what I meant, and I will not leave this crowd in doubt, if I can explain it to them, what I really meant in the use of that paragraph.

I am not, in the first place, unaware that this government has endured eighty-two years half slave and half free. I know that. I am tolerably well acquainted with the history of the country, and I know that it has endured eighty-two years half slave and half free. I believe--and that is what I meant to allude to there--I believe it has endured because during all that time, until the introduction of the Nebraska Bill, the public mind did rest all the time in the belief that slavery was in course of ultimate extinction. That was what gave us the rest that we had through that period of eighty-two years,--at least, so I believe. I have always hated slavery, I think, as much as any Abolitionist,--I have been an Old Line Whig,--I have always hated it; but I have always been quiet about it until this new era of the introduction of the Nebraska Bill began. I always believed that everybody was against it, and that it was in course of ultimate extinction. [Pointing to Mr. Browning, who stood near by.] Browning thought so; the great mass of the nation have rested in the belief that slavery was in course of ultimate extinction. They had reason so to believe.

The adoption of the Constitution and its attendant history led the people to believe so; and that such was the belief of the framers of the Constitution itself, why did those old men, about the time of the adoption of the Constitution, decree that slavery should not go into the new Territory, where it had not already gone? Why declare that within twenty years the African slave trade, by which slaves are supplied, might be cut off by Congress? Why were all these acts? I might enumerate more of these acts; but enough. What were they but a clear indication that the framers of the Constitution intended and expected the ultimate extinction of that institution? And now, when I say, as I said in my speech that Judge Douglas has quoted from, when I say that I think the opponents of slavery will resist the farther spread of it, and place it where the public mind shall rest with the belief that it is in course of ultimate extinction, I only mean to say that they will place it where the founders of this government originally placed it.

I have said a hundred times, and I have now no inclination to take it back, that I believe there is no right, and ought to be no inclination, in the people of the free States to enter into the slave States and interfere with the question of slavery at all. I have said that always; Judge Douglas has heard me say it, if not quite a hundred times, at least as good as a hundred times; and when it is said that I am in favor of

interfering with slavery where it exists, I know it is unwarranted by anything I have ever intended, and, as I believe, by anything I have ever said. If, by any means, I have ever used language which could fairly be so construed (as, however, I believe I never have), I now correct it.

So much, then, for the inference that Judge Douglas draws, that I am in favor of setting the sections at war with one another. I know that I never meant any such thing, and I believe that no fair mind can infer any such thing from anything I have ever said.

Now, in relation to his inference that I am in favor of a general consolidation of all the local institutions of the various States. I will attend to that for a little while, and try to inquire, if I can, how on earth it could be that any man could draw such an inference from anything I said. I have said, very many times, in Judge Douglas's hearing, that no man believed more than I in the principle of self-government; that it lies at the bottom of all my ideas of just government, from beginning to end. I have denied that his use of that term applies properly. But for the thing itself, I deny that any man has ever gone ahead of me in his devotion to the principle, whatever he may have done in efficiency in advocating it. I think that I have said it in your hearing, that I believe each individual is naturally entitled to do as he pleases with himself and the fruit of his labor, so far as it in no wise interferes with any other man's rights; that each community as a State has a right to do exactly as it pleases with all the concerns within that State that interfere with the right of no other State; and that the General Government, upon principle, has no right to interfere with anything other than that general class of things that does concern the whole. I have said that at all times. I have said, as illustrations, that I do not believe in the right of Illinois to interfere with the cranberry laws of Indiana, the oyster laws of Virginia, or the liquor laws of Maine. I have said these things over and over again, and I repeat them here as my sentiments.

How is it, then, that Judge Douglas infers, because I hope to see slavery put where the public mind shall rest in the belief that it is in the course of ultimate extinction, that I am in favor of Illinois going over and interfering with the cranberry laws of Indiana? What can authorize him to draw any such inference?

I suppose there might be one thing that at least enabled him to draw such an inference that would not be true with me or many others: that is, because he looks upon all this matter of slavery as an exceedingly little thing,--this matter of keeping one sixth of the population of the whole nation in a state of oppression and tyranny unequaled in the world. He looks upon it as being an exceedingly little thing,--only equal to the question of the cranberry laws of Indiana; as something having no moral question in it; as something on a par with the question of whether a man shall pasture his land with cattle, or plant it with tobacco; so little and so small a thing that he concludes, if I could desire that anything should be done to bring about the ultimate extinction of that little thing, I must be in favor of bringing about an amalgamation of all the other little things in the Union. Now, it so happens--and there, I presume, is the foundation of this mistake--that the Judge thinks thus; and it so happens that there is a vast portion of the American people that do not look upon that matter as

being this very little thing. They look upon it as a vast moral evil; they can prove it as such by the writings of those who gave us the blessings of liberty which we enjoy, and that they so looked upon it, and not as an evil merely confining itself to the States where it is situated; and while we agree that, by the Constitution we assented to, in the States where it exists, we have no right to interfere with it, because it is in the Constitution; and we are by both duty and inclination to stick by that Constitution, in all its letter and spirit, from beginning to end.

So much, then, as to my disposition--my wish to have all the State legislatures blotted out, and to have one consolidated government, and a uniformity of domestic regulations in all the States, by which I suppose it is meant, if we raise corn here, we must make sugar-cane grow here too, and we must make those which grow North grow in the South. All this I suppose he understands I am in favor of doing. Now, so much for all this nonsense; for I must call it so. The Judge can have no issue with me on a question of establishing uniformity in the domestic regulations of the States.

A little now on the other point,--the Dred Scott decision. Another of the issues he says that is to be made with me is upon his devotion to the Dred Scott decision, and my opposition to it.

I have expressed heretofore, and I now repeat, my opposition to the Dred Scott decision; but I should be allowed to state the nature of that opposition, and I ask your indulgence while I do so. What is fairly implied by the term Judge Douglas has used, "resistance to the decision"? I do not resist it. If I wanted to take Dred Scott from his master, I would be interfering with property, and that terrible difficulty that Judge Douglas speaks of, of interfering with property, would arise. But I am doing no such thing as that, but all that I am doing is refusing to obey it as a political rule. If I were in Congress, and a vote should come up on a question whether slavery should be prohibited in a new Territory, in spite of the Dred Scott decision, I would vote that it should.

That is what I should do. Judge Douglas said last night that before the decision he might advance his opinion, and it might be contrary to the decision when it was made; but after it was made he would abide by it until it was reversed. Just so! We let this property abide by the decision, but we will try to reverse that decision. We will try to put it where Judge Douglas would not object, for he says he will obey it until it is reversed. Somebody has to reverse that decision, since it is made, and we mean to reverse it, and we mean to do it peaceably.

What are the uses of decisions of courts? They have two uses. As rules of property they have two uses. First, they decide upon the question before the court. They decide in this case that Dred Scott is a slave. Nobody resists that, not only that, but they say to everybody else that persons standing just as Dred Scott stands are as he is. That is, they say that when a question comes up upon another person, it will be so decided again, unless the court decides in another way, unless the court overrules its decision. Well, we mean to do what we can to have the court decide the other way. That is one thing we mean to try to do.

The sacredness that Judge Douglas throws around this decision is a degree of sacredness that has never been before thrown around any other decision. I have never heard of such a thing. Why, decisions apparently contrary to that decision, or that good lawyers thought were contrary to that decision, have been made by that very court before. It is the first of its kind; it is an astonisher in legal history. It is a new wonder of the world. It is based upon falsehood in the main as to the facts; allegations of facts upon which it stands are not facts at all in many instances, and no decision made on any question--the first instance of a decision made under so many unfavorable circumstances--thus placed, has ever been held by the profession as law, and it has always needed confirmation before the lawyers regarded it as settled law. But Judge Douglas will have it that all hands must take this extraordinary decision, made under these extraordinary circumstances, and give their vote in Congress in accordance with it, yield to it, and obey it in every possible sense. Circumstances alter cases. Do not gentlemen here remember the case of that same Supreme Court some twenty-five or thirty years ago deciding that a National Bank was constitutional? I ask, if somebody does not remember that a National Bank was declared to be constitutional? Such is the truth, whether it be remembered or not. The Bank charter ran out, and a recharter was granted by Congress. That recharter was laid before General Jackson. It was urged upon him, when he denied the constitutionality of the Bank, that the Supreme Court had decided that it was constitutional; and General Jackson then said that the Supreme Court had no right to lay down a rule to govern a coordinate branch of the government, the members of which had sworn to support the Constitution; that each member had sworn to support that Constitution as he understood it. I will venture here to say that I have heard Judge Douglas say that he approved of General Jackson for that act. What has now become of all his tirade about "resistance of the Supreme Court"?

My fellow-citizens, getting back a little,--for I pass from these points,--when Judge Douglas makes his threat of annihilation upon the "alliance," he is cautious to say that that warfare of his is to fall upon the leaders of the Republican party. Almost every word he utters, and every distinction he makes, has its significance. He means for the Republicans who do not count themselves as leaders, to be his friends; he makes no fuss over them; it is the leaders that he is making war upon. He wants it understood that the mass of the Republican party are really his friends. It is only the leaders that are doing something that are intolerant, and that require extermination at his hands. As this is dearly and unquestionably the light in which he presents that matter, I want to ask your attention, addressing myself to the Republicans here, that I may ask you some questions as to where you, as the Republican party, would be placed if you sustained Judge Douglas in his present position by a re-election? I do not claim, gentlemen, to be unselfish; I do not pretend that I would not like to go to the United States Senate,--I make no such hypocritical pretense; but I do say to you that in this mighty issue it is nothing to you--nothing to the mass of the people of the nation,--whether or not Judge Douglas or myself shall ever be heard of after this night; it may be a trifle to either of us, but in connection with this mighty question, upon which hang the destinies of the nation, perhaps, it is absolutely nothing: but where will you be placed if you reindorse Judge Douglas? Don't you know how apt he

is, how exceedingly anxious he is at all times, to seize upon anything and everything to persuade you that something he has done you did yourselves? Why, he tried to persuade you last night that our Illinois Legislature instructed him to introduce the Nebraska Bill. There was nobody in that Legislature ever thought of such a thing; and when he first introduced the bill, he never thought of it; but still he fights furiously for the proposition, and that he did it because there was a standing instruction to our Senators to be always introducing Nebraska bills. He tells you he is for the Cincinnati platform, he tells you he is for the Dred Scott decision. He tells you, not in his speech last night, but substantially in a former speech, that he cares not if slavery is voted up or down; he tells you the struggle on Lecompton is past; it may come up again or not, and if it does, he stands where he stood when, in spite of him and his opposition, you built up the Republican party. If you indorse him, you tell him you do not care whether slavery be voted up or down, and he will close or try to close your mouths with his declaration, repeated by the day, the week, the month, and the year. Is that what you mean? [Cries of "No," one voice "Yes."] Yes, I have no doubt you who have always been for him, if you mean that. No doubt of that, soberly I have said, and I repeat it. I think, in the position in which Judge Douglas stood in opposing the Lecompton Constitution, he was right; he does not know that it will return, but if it does we may know where to find him, and if it does not, we may know where to look for him, and that is on the Cincinnati platform. Now, I could ask the Republican party, after all the hard names that Judge Douglas has called them by all his repeated charges of their inclination to marry with and hug negroes; all his declarations of Black Republicanism,--by the way, we are improving, the black has got rubbed off,--but with all that, if he be indorsed by Republican votes, where do you stand? Plainly, you stand ready saddled, bridled, and harnessed, and waiting to be driven over to the slavery extension camp of the nation,--just ready to be driven over, tied together in a lot, to be driven over, every man with a rope around his neck, that halter being held by Judge Douglas. That is the question. If Republican men have been in earnest in what they have done, I think they had better not do it; but I think that the Republican party is made up of those who, as far as they can peaceably, will oppose the extension of slavery, and who will hope for its ultimate extinction. If they believe it is wrong in grasping up the new lands of the continent and keeping them from the settlement of free white laborers, who want the land to bring up their families upon; if they are in earnest, although they may make a mistake, they will grow restless, and the time will come when they will come back again and reorganize, if not by the same name, at least upon the same principles as their party now has. It is better, then, to save the work while it is begun. You have done the labor; maintain it, keep it. If men choose to serve you, go with them; but as you have made up your organization upon principle, stand by it; for, as surely as God reigns over you, and has inspired your mind, and given you a sense of propriety, and continues to give you hope, so surely will you still cling to these ideas, and you will at last come back again after your wanderings, merely to do your work over again.

We were often,--more than once, at least,--in the course of Judge Douglas's speech last night, reminded that this government was made for white men; that he believed it was made for white men. Well, that is putting it into a shape in which no one wants

to deny it; but the Judge then goes into his passion for drawing inferences that are not warranted. I protest, now and forever, against that counterfeit logic which presumes that because I did not want a negro woman for a slave, I do necessarily want her for a wife. My understanding is that I need not have her for either, but, as God made us separate, we can leave one another alone, and do one another much good thereby. There are white men enough to marry all the white women, and enough black men to marry all the black women; and in God's name let them be so married. The Judge regales us with the terrible enormities that take place by the mixture of races; that the inferior race bears the superior down. Why, Judge, if we do not let them get together in the Territories, they won't mix there.

[A voice: "Three cheers for Lincoln".--The cheers were given with a hearty good-will.]

I should say at least that that is a self-evident truth.

Now, it happens that we meet together once every year, sometimes about the 4th of July, for some reason or other. These 4th of July gatherings I suppose have their uses. If you will indulge me, I will state what I suppose to be some of them.

We are now a mighty nation; we are thirty or about thirty millions of people, and we own and inhabit about one fifteenth part of the dry land of the whole earth. We run our memory back over the pages of history for about eighty-two years, and we discover that we were then a very small people in point of numbers, vastly inferior to what we are now, with a vastly less extent of country, with vastly less of everything we deem desirable among men; we look upon the change as exceedingly advantageous to us and to our posterity, and we fix upon something that happened away back, as in some way or other being connected with this rise of prosperity. We find a race of men living in that day whom we claim as our fathers and grandfathers; they were iron men; they fought for the principle that they were contending for; and we understood that by what they then did it has followed that the degree of prosperity which we now enjoy has come to us. We hold this annual celebration to remind ourselves of all the good done in this process of time, of how it was done and who did it, and how we are historically connected with it; and we go from these meetings in better humor with ourselves, we feel more attached the one to the other, and more firmly bound to the country we inhabit. In every way we are better men in the age and race and country in which we live, for these celebrations. But after we have done all this we have not yet reached the whole. There is something else connected with it. We have--besides these, men descended by blood from our ancestors--among us perhaps half our people who are not descendants at all of these men; they are men who have come from Europe, German, Irish, French, and Scandinavian,--men that have come from Europe themselves, or whose ancestors have come hither and settled here, finding themselves our equals in all things. If they look back through this history to trace their connection with those days by blood, they find they have none, they cannot carry themselves back into that glorious epoch and make themselves feel that they are part of us; but when they look through that old Declaration of Independence, they find that those old men say that "We hold these truths to be self-evident, that all men are created equal"; and then they feel that that

moral sentiment, taught in that day, evidences their relation to those men, that it is the father of all moral principle in them, and that they have a right to claim it as though they were blood of the blood, and flesh of the flesh, of the men who wrote that Declaration; and so they are. That is the electric cord in that Declaration that links the hearts of patriotic and liberty-loving men together, that will link those patriotic hearts as long as the love of freedom exists in the minds of men throughout the world.

Now, sirs, for the purpose of squaring things with this idea of "don't care if slavery is voted up or voted down," for sustaining the Dred Scott decision, for holding that the Declaration of Independence did not mean anything at all, we have Judge Douglas giving his exposition of what the Declaration of Independence means, and we have him saying that the people of America are equal to the people of England. According to his construction, you Germans are not connected with it. Now, I ask you in all soberness if all these things, if indulged in, if ratified, if confirmed and indorsed, if taught to our children, and repeated to them, do not tend to rub out the sentiment of liberty in the country, and to transform this government into a government of some other form. Those arguments that are made, that the inferior race are to be treated with as much allowance as they are capable of enjoying; that as much is to be done for them as their condition will allow,--what are these arguments? They are the arguments that kings have made for enslaving the people in all ages of the world. You will find that all the arguments in favor of kingcraft were of this class; they always bestrode the necks of the people not that they wanted to do it, but because the people were better off for being ridden. That is their argument, and this argument of the Judge is the same old serpent that says, You work, and I eat; you toil, and I will enjoy the fruits of it. Turn in whatever way you will, whether it come from the mouth of a king, an excuse for enslaving the people of his country, or from the mouth of men of one race as a reason for enslaving the men of another race, it is all the same old serpent; and I hold, if that course of argumentation that is made for the purpose of convincing the public mind that we should not care about this should be granted, it does not stop with the negro. I should like to know, if taking this old Declaration of Independence, which declares that all men are equal upon principle, and making exceptions to it, where will it stop? If one man says it does not mean a negro, why not another say it does not mean some other man? If that Declaration is not the truth, let us get the statute book, in which we find it, and tear it out! Who is so bold as to do it? If it is not true, let us tear it out! [Cries of "No, no."] Let us stick to it, then; let us stand firmly by it, then.

It may be argued that there are certain conditions that make necessities and impose them upon us; and to the extent that a necessity is imposed upon a man, he must submit to it. I think that was the condition in which we found ourselves when we established this government. We had slavery among us, we could not get our Constitution unless we permitted them to remain in slavery, we could not secure the good we did secure if we grasped for more; and having by necessity submitted to that much, it does not destroy the principle that is the charter of our liberties. Let that charter stand as our standard.

My friend has said to me that I am a poor hand to quote Scripture. I will try it again, however. It is said in one of the admonitions of our Lord, "As your Father in heaven is perfect, be ye also perfect." The Savior, I suppose, did not expect that any human creature could be perfect as the Father in heaven; but he said, "As your Father in heaven is perfect, be ye also perfect." He set that up as a standard; and he who did most towards reaching that standard attained the highest degree of moral perfection. So I say in relation to the principle that all men are created equal, let it be as nearly reached as we can. If we cannot give freedom to every creature, let us do nothing that will impose slavery upon any other creature. Let us then turn this government back into the channel in which the framers of the Constitution originally placed it. Let us stand firmly by each other. If we do not do so, we are turning in the contrary direction, that our friend Judge Douglas proposes--not intentionally--as working in the traces tends to make this one universal slave nation. He is one that runs in that direction, and as such I resist him.

My friends, I have detained you about as long as I desired to do, and I have only to say: Let us discard all this quibbling about this man and the other man, this race and that race and the other race being inferior, and therefore they must be placed in an inferior position; discarding our standard that we have left us. Let us discard all these things, and unite as one people throughout this land, until we shall once more stand up declaring that all men are created equal.

My friends, I could not, without launching off upon some new topic, which would detain you too long, continue to-night. I thank you for this most extensive audience that you have furnished me to-night. I leave you, hoping that the lamp of liberty will burn in your bosoms until there shall no longer be a doubt that all men are created free and equal.

SPEECH AT SPRINGFIELD, JULY 17, 1858.

DELIVERED SATURDAY EVENING

(Mr. Douglas was not present.)

FELLOW-CITIZENS:--Another election, which is deemed an important one, is approaching, and, as I suppose, the Republican party will, without much difficulty, elect their State ticket. But in regard to the Legislature, we, the Republicans, labor under some disadvantages. In the first place, we have a Legislature to elect upon an apportionment of the representation made several years ago, when the proportion of the population was far greater in the South (as compared with the North) than it now is; and inasmuch as our opponents hold almost entire sway in the South, and we a correspondingly large majority in the North, the fact that we are now to be represented as we were years ago, when the population was different, is to us a very great disadvantage. We had in the year 1855, according to law, a census, or enumeration of the inhabitants, taken for the purpose of a new apportionment of representation. We know what a fair apportionment of representation upon that census would give us. We know that it could not, if fairly made, fail to give the Republican party from six to ten more members of the Legislature than they can

probably get as the law now stands. It so happened at the last session of the Legislature that our opponents, holding the control of both branches of the Legislature, steadily refused to give us such an apportionment as we were rightly entitled to have upon the census already taken. The Legislature steadily refused to give us such an apportionment as we were rightfully entitled to have upon the census taken of the population of the State. The Legislature would pass no bill upon that subject, except such as was at least as unfair to us as the old one, and in which, in some instances, two men in the Democratic regions were allowed to go as far toward sending a member to the Legislature as three were in the Republican regions. Comparison was made at the time as to representative and senatorial districts, which completely demonstrated that such was the fact. Such a bill was passed and tendered to the Republican Governor for his signature; but, principally for the reasons I have stated, he withheld his approval, and the bill fell without becoming a law.

Another disadvantage under which we labor is that there are one or two Democratic Senators who will be members of the next Legislature, and will vote for the election of Senator, who are holding over in districts in which we could, on all reasonable calculation, elect men of our own, if we only had the chance of an election. When we consider that there are but twenty-five Senators in the Senate, taking two from the side where they rightfully belong, and adding them to the other, is to us a disadvantage not to be lightly regarded. Still, so it is; we have this to contend with. Perhaps there is no ground of complaint on our part. In attending to the many things involved in the last general election for President, Governor, Auditor, Treasurer, Superintendent of Public Instruction, Members of Congress, of the Legislature, County Officers, and so on, we allowed these things to happen by want of sufficient attention, and we have no cause to complain of our adversaries, so far as this matter is concerned. But we have some cause to complain of the refusal to give us a fair apportionment.

There is still another disadvantage under which we labor, and to which I will ask your attention. It arises out of the relative positions of the two persons who stand before the State as candidates for the Senate. Senator Douglas is of world-wide renown. All the anxious politicians of his party, or who have been of his party for years past, have been looking upon him as certainly, at no distant day, to be the President of the United States. They have seen in his round, jolly, fruitful face post-offices, land-offices, marshalships, and cabinet appointments, charge-ships and foreign missions bursting and sprouting out in wonderful exuberance, ready to be laid hold of by their greedy hands. And as they have been gazing upon this attractive picture so long, they cannot, in the little distraction that has taken place in the party, bring themselves to give up the charming hope; but with greedier anxiety they rush about him, sustain him, and give him marches, triumphal entries, and receptions beyond what even in the days of his highest prosperity they could have brought about in his favor. On the contrary, nobody has ever expected me to be President. In my poor, lean, lank face, nobody has ever seen that any cabbages were sprouting out. These are disadvantages all, taken together, that the Republicans labor under. We have to fight this battle upon principle, and upon principle alone. I am, in a certain sense, made the standard-bearer in behalf of the Republicans. I was made so merely

because there had to be some one so placed,--I being in nowise preferable to any other one of twenty-five, perhaps a hundred, we have in the Republican ranks. Then I say I wish it to be distinctly understood and borne in mind that we have to fight this battle without many--perhaps without any of the external aids which are brought to bear against us. So I hope those with whom I am surrounded have principle enough to nerve themselves for the task, and leave nothing undone that can be fairly done to bring about the right result.

After Senator Douglas left Washington, as his movements were made known by the public prints, he tarried a considerable time in the city of New York; and it was heralded that, like another Napoleon, he was lying by and framing the plan of his campaign. It was telegraphed to Washington City, and published in the Union, that he was framing his plan for the purpose of going to Illinois to pounce upon and annihilate the treasonable and disunion speech which Lincoln had made here on the 16th of June. Now, I do suppose that the Judge really spent some time in New York maturing the plan of the campaign, as his friends heralded for him. I have been able, by noting his movements since his arrival in Illinois, to discover evidences confirmatory of that allegation. I think I have been able to see what are the material points of that plan. I will, for a little while, ask your attention to some of them. What I shall point out, though not showing the whole plan, are, nevertheless, the main points, as I suppose.

They are not very numerous. The first is popular sovereignty. The second and third are attacks upon my speech made on the 16th of June. Out of these three points--drawing within the range of popular sovereignty the question of the Lecompton Constitution--he makes his principal assault. Upon these his successive speeches are substantially one and the same. On this matter of popular sovereignty I wish to be a little careful. Auxiliary to these main points, to be sure, are their thunderings of cannon, their marching and music, their fizzlegigs and fireworks; but I will not waste time with them. They are but the little trappings of the campaign.

Coming to the substance,--the first point, "popular sovereignty." It is to be labeled upon the cars in which he travels; put upon the hacks he rides in; to be flaunted upon the arches he passes under, and the banners which wave over him. It is to be dished up in as many varieties as a French cook can produce soups from potatoes. Now, as this is so great a staple of the plan of the campaign, it is worth while to examine it carefully; and if we examine only a very little, and do not allow ourselves to be misled, we shall be able to see that the whole thing is the most arrant Quixotism that was ever enacted before a community. What is the matter of popular sovereignty? The first thing, in order to understand it, is to get a good definition of what it is, and after that to see how it is applied.

I suppose almost every one knows that, in this controversy, whatever has been said has had reference to the question of negro slavery. We have not been in a controversy about the right of the people to govern themselves in the ordinary matters of domestic concern in the States and Territories. Mr. Buchanan, in one of his late messages (I think when he sent up the Lecompton Constitution) urged that the main point to which the public attention had been directed was not in regard to the great

variety of small domestic matters, but was directed to the question of negro slavery; and he asserts that if the people had had a fair chance to vote on that question there was no reasonable ground of objection in regard to minor questions. Now, while I think that the people had not had given, or offered, them a fair chance upon that slavery question, still, if there had been a fair submission to a vote upon that main question, the President's proposition would have been true to the utmost. Hence, when hereafter I speak of popular sovereignty, I wish to be understood as applying what I say to the question of slavery only, not to other minor domestic matters of a Territory or a State.

Does Judge Douglas, when he says that several of the past years of his life have been devoted to the question of "popular sovereignty," and that all the remainder of his life shall be devoted to it, does he mean to say that he has been devoting his life to securing to the people of the Territories the right to exclude slavery from the Territories? If he means so to say he means to deceive; because he and every one knows that the decision of the Supreme Court, which he approves and makes especial ground of attack upon me for disapproving, forbids the people of a Territory to exclude slavery. This covers the whole ground, from the settlement of a Territory till it reaches the degree of maturity entitling it to form a State Constitution. So far as all that ground is concerned, the Judge is not sustaining popular sovereignty, but absolutely opposing it. He sustains the decision which declares that the popular will of the Territory has no constitutional power to exclude slavery during their territorial existence. This being so, the period of time from the first settlement of a Territory till it reaches the point of forming a State Constitution is not the thing that the Judge has fought for or is fighting for, but, on the contrary, he has fought for, and is fighting for, the thing that annihilates and crushes out that same popular sovereignty.

Well, so much being disposed of, what is left? Why, he is contending for the right of the people, when they come to make a State Constitution, to make it for themselves, and precisely as best suits themselves. I say again, that is quixotic. I defy contradiction when I declare that the Judge can find no one to oppose him on that proposition. I repeat, there is nobody opposing that proposition on principle. Let me not be misunderstood. I know that, with reference to the Lecompton Constitution, I may be misunderstood; but when you understand me correctly, my proposition will be true and accurate. Nobody is opposing, or has opposed, the right of the people, when they form a constitution, to form it for themselves. Mr. Buchanan and his friends have not done it; they, too, as well as the Republicans and the Anti-Lecompton Democrats, have not done it; but on the contrary, they together have insisted on the right of the people to form a constitution for themselves. The difference between the Buchanan men on the one hand, and the Douglas men and the Republicans on the other, has not been on a question of principle, but on a question of fact.

The dispute was upon the question of fact, whether the Lecompton Constitution had been fairly formed by the people or not. Mr. Buchanan and his friends have not contended for the contrary principle any more than the Douglas men or the Republicans. They have insisted that whatever of small irregularities existed in getting up the Lecompton Constitution were such as happen in the settlement of all

new Territories. The question was, Was it a fair emanation of the people? It was a question of fact, and not of principle. As to the principle, all were agreed. Judge Douglas voted with the Republicans upon that matter of fact.

He and they, by their voices and votes, denied that it was a fair emanation of the people. The Administration affirmed that it was. With respect to the evidence bearing upon that question of fact, I readily agree that Judge Douglas and the Republicans had the right on their side, and that the Administration was wrong. But I state again that, as a matter of principle, there is no dispute upon the right of a people in a Territory, merging into a State, to form a constitution for themselves without outside interference from any quarter. This being so, what is Judge Douglas going to spend his life for? Is he going to spend his life in maintaining a principle that nobody on earth opposes? Does he expect to stand up in majestic dignity, and go through his apotheosis and become a god in the maintaining of a principle which neither man nor mouse in all God's creation is opposing? Now something in regard to the Lecompton Constitution more specially; for I pass from this other question of popular sovereignty as the most arrant humbug that has ever been attempted on an intelligent community.

As to the Lecompton Constitution, I have already said that on the question of fact, as to whether it was a fair emanation of the people or not, Judge Douglas, with the Republicans and some Americans, had greatly the argument against the Administration; and while I repeat this, I wish to know what there is in the opposition of Judge Douglas to the Lecompton Constitution that entitles him to be considered the only opponent to it,--as being par excellence the very quintessence of that opposition. I agree to the rightfulness of his opposition. He in the Senate and his class of men there formed the number three and no more. In the House of Representatives his class of men--the Anti-Lecompton Democrats--formed a number of about twenty. It took one hundred and twenty to defeat the measure, against one hundred and twelve. Of the votes of that one hundred and twenty, Judge Douglas's friends furnished twenty, to add to which there were six Americans and ninety-four Republicans. I do not say that I am precisely accurate in their numbers, but I am sufficiently so for any use I am making of it.

Why is it that twenty shall be entitled to all the credit of doing that work, and the hundred none of it? Why, if, as Judge Douglas says, the honor is to be divided and due credit is to be given to other parties, why is just so much given as is consonant with the wishes, the interests, and advancement of the twenty? My understanding is, when a common job is done, or a common enterprise prosecuted, if I put in five dollars to your one, I have a right to take out five dollars to your one. But he does not so understand it. He declares the dividend of credit for defeating Lecompton upon a basis which seems unprecedented and incomprehensible.

Let us see. Lecompton in the raw was defeated. It afterward took a sort of cooked-up shape, and was passed in the English bill. It is said by the Judge that the defeat was a good and proper thing. If it was a good thing, why is he entitled to more credit than others for the performance of that good act, unless there was something in the antecedents of the Republicans that might induce every one to expect them to

join in that good work, and at the same time something leading them to doubt that he would? Does he place his superior claim to credit on the ground that he performed a good act which was never expected of him? He says I have a proneness for quoting Scripture. If I should do so now, it occurs that perhaps he places himself somewhat upon the ground of the parable of the lost sheep which went astray upon the mountains, and when the owner of the hundred sheep found the one that was lost, and threw it upon his shoulders and came home rejoicing, it was said that there was more rejoicing over the one sheep that was lost and had been found than over the ninety and nine in the fold. The application is made by the Saviour in this parable, thus: "Verily, I say unto you, there is more rejoicing in heaven over one sinner that repenteth, than over ninety and nine just persons that need no repentance."

And now, if the Judge claims the benefit of this parable, let him repent. Let him not come up here and say: "I am the only just person; and you are the ninety-nine sinners!" Repentance before forgiveness is a provision of the Christian system, and on that condition alone will the Republicans grant his forgiveness.

How will he prove that we have ever occupied a different position in regard to the Lecompton Constitution or any principle in it? He says he did not make his opposition on the ground as to whether it was a free or slave constitution, and he would have you understand that the Republicans made their opposition because it ultimately became a slave constitution. To make proof in favor of himself on this point, he reminds us that he opposed Lecompton before the vote was taken declaring whether the State was to be free or slave. But he forgets to say that our Republican Senator, Trumbull, made a speech against Lecompton even before he did.

Why did he oppose it? Partly, as he declares, because the members of the convention who framed it were not fairly elected by the people; that the people were not allowed to vote unless they had been registered; and that the people of whole counties, some instances, were not registered. For these reasons he declares the Constitution was not an emanation, in any true sense, from the people. He also has an additional objection as to the mode of submitting the Constitution back to the people. But bearing on the question of whether the delegates were fairly elected, a speech of his, made something more than twelve months ago, from this stand, becomes important. It was made a little while before the election of the delegates who made Lecompton. In that speech he declared there was every reason to hope and believe the election would be fair; and if any one failed to vote, it would be his own culpable fault.

I, a few days after, made a sort of answer to that speech. In that answer I made, substantially, the very argument with which he combated his Lecompton adversaries in the Senate last winter. I pointed to the facts that the people could not vote without being registered, and that the time for registering had gone by. I commented on it as wonderful that Judge Douglas could be ignorant of these facts which every one else in the nation so well knew.

I now pass from popular sovereignty and Lecompton. I may have occasion to refer to one or both.

When he was preparing his plan of campaign, Napoleon-like, in New York, as appears by two speeches I have heard him deliver since his arrival in Illinois, he gave special attention to a speech of mine, delivered here on the 16th of June last. He says that he carefully read that speech. He told us that at Chicago a week ago last night and he repeated it at Bloomington last night. Doubtless, he repeated it again to-day, though I did not hear him. In the first two places--Chicago and Bloomington I heard him; to-day I did not. He said he had carefully examined that speech,--when, he did not say; but there is no reasonable doubt it was when he was in New York preparing his plan of campaign. I am glad he did read it carefully. He says it was evidently prepared with great care. I freely admit it was prepared with care. I claim not to be more free from errors than others,--perhaps scarcely so much; but I was very careful not to put anything in that speech as a matter of fact, or make any inferences, which did not appear to me to be true and fully warrantable. If I had made any mistake, I was willing to be corrected; if I had drawn any inference in regard to Judge Douglas or any one else which was not warranted, I was fully prepared to modify it as soon as discovered. I planted myself upon the truth and the truth only, so far as I knew it, or could be brought to know it.

Having made that speech with the most kindly feelings toward Judge Douglas, as manifested therein, I was gratified when I found that he had carefully examined it, and had detected no error of fact, nor any inference against him, nor any misrepresentations of which he thought fit to complain. In neither of the two speeches I have mentioned did he make any such complaint. I will thank any one who will inform me that he, in his speech to-day, pointed out anything I had stated respecting him as being erroneous. I presume there is no such thing. I have reason to be gratified that the care and caution used in that speech left it so that he, most of all others interested in discovering error, has not been able to point out one thing against him which he could say was wrong. He seizes upon the doctrines he supposes to be included in that speech, and declares that upon them will turn the issues of this campaign. He then quotes, or attempts to quote, from my speech. I will not say that he wilfully misquotes, but he does fail to quote accurately. His attempt at quoting is from a passage which I believe I can quote accurately from memory. I shall make the quotation now, with some comments upon it, as I have already said, in order that the Judge shall be left entirely without excuse for misrepresenting me. I do so now, as I hope, for the last time. I do this in great caution, in order that if he repeats his misrepresentation it shall be plain to all that he does so wilfully. If, after all, he still persists, I shall be compelled to reconstruct the course I have marked out for myself, and draw upon such humble resources, as I have, for a new course, better suited to the real exigencies of the case. I set out in this campaign with the intention of conducting it strictly as a gentleman, in substance at least, if not in the outside polish. The latter I shall never be; but that which constitutes the inside of a gentleman I hope I understand, and am not less inclined to practice than others. It was my purpose and expectation that this canvass would be conducted upon principle, and with fairness on both sides, and it shall not be my fault if this purpose and expectation shall be given up.

He charges, in substance, that I invite a war of sections; that I propose all the local institutions of the different States shall become consolidated and uniform. What is there in the language of that speech which expresses such purpose or bears such construction? I have again and again said that I would not enter into any of the States to disturb the institution of slavery. Judge Douglas said, at Bloomington, that I used language most able and ingenious for concealing what I really meant; and that while I had protested against entering into the slave States, I nevertheless did mean to go on the banks of the Ohio and throw missiles into Kentucky, to disturb them in their domestic institutions.

I said in that speech, and I meant no more, that the institution of slavery ought to be placed in the very attitude where the framers of this government placed it and left it. I do not understand that the framers of our Constitution left the people of the free States in the attitude of firing bombs or shells into the slave States. I was not using that passage for the purpose for which he infers I did use it. I said:

"We are now far advanced into the fifth year since a policy was created for the avowed object and with the confident promise of putting an end to slavery agitation. Under the operation of that policy that agitation has not only not ceased, but has constantly augmented. In my opinion it will not cease till a crisis shall have been reached and passed. 'A house divided against itself cannot stand.' I believe that this government cannot endure permanently half slave and half free; it will become all one thing or all the other. Either the opponents of slavery will arrest the further spread of it, and place it where the public mind shall rest in the belief that it is in the course of ultimate extinction, or its advocates will push it forward till it shall become alike lawful in all the States, old as well as new, North as well as South."

Now, you all see, from that quotation, I did not express my wish on anything. In that passage I indicated no wish or purpose of my own; I simply expressed my expectation. Cannot the Judge perceive a distinction between a purpose and an expectation? I have often expressed an expectation to die, but I have never expressed a wish to die. I said at Chicago, and now repeat, that I am quite aware this government has endured, half slave and half free, for eighty-two years. I understand that little bit of history. I expressed the opinion I did because I perceived--or thought I perceived--a new set of causes introduced. I did say at Chicago, in my speech there, that I do wish to see the spread of slavery arrested, and to see it placed where the public mind shall rest in the belief that it is in the course of ultimate extinction. I said that because I supposed, when the public mind shall rest in that belief, we shall have peace on the slavery question. I have believed--and now believe--the public mind did rest on that belief up to the introduction of the Nebraska Bill.

Although I have ever been opposed to slavery, so far I rested in the hope and belief that it was in the course of ultimate extinction. For that reason it had been a minor question with me. I might have been mistaken; but I had believed, and now believe, that the whole public mind, that is, the mind of the great majority, had rested in that belief up to the repeal of the Missouri Compromise. But upon that event I became convinced that either I had been resting in a delusion, or the institution was being placed on a new basis, a basis for making it perpetual, national, and universal.

Subsequent events have greatly confirmed me in that belief. I believe that bill to be the beginning of a conspiracy for that purpose. So believing, I have since then considered that question a paramount one. So believing, I thought the public mind will never rest till the power of Congress to restrict the spread of it shall again be acknowledged and exercised on the one hand or, on the other, all resistance be entirely crushed out. I have expressed that opinion, and I entertain it to-night. It is denied that there is any tendency to the nationalization of slavery in these States.

Mr. Brooks, of South Carolina, in one of his speeches, when they were presenting him canes, silver plate, gold pitchers, and the like, for assaulting Senator Sumner, distinctly affirmed his opinion that when this Constitution was formed it was the belief of no man that slavery would last to the present day. He said, what I think, that the framers of our Constitution placed the institution of slavery where the public mind rested in the hope that it was in the course of ultimate extinction. But he went on to say that the men of the present age, by their experience, have become wiser than the framers of the Constitution, and the invention of the cotton gin had made the perpetuity of slavery a necessity in this country.

As another piece of evidence tending to this same point: Quite recently in Virginia, a man--the owner of slaves--made a will providing that after his death certain of his slaves should have their freedom if they should so choose, and go to Liberia, rather than remain in slavery. They chose to be liberated. But the persons to whom they would descend as property claimed them as slaves. A suit was instituted, which finally came to the Supreme Court of Virginia, and was therein decided against the slaves upon the ground that a negro cannot make a choice; that they had no legal power to choose, could not perform the condition upon which their freedom depended.

I do not mention this with any purpose of criticizing it, but to connect it with the arguments as affording additional evidence of the change of sentiment upon this question of slavery in the direction of making it perpetual and national. I argue now as I did before, that there is such a tendency; and I am backed, not merely by the facts, but by the open confession in the slave States.

And now as to the Judge's inference that because I wish to see slavery placed in the course of ultimate extinction,--placed where our fathers originally placed it,--I wish to annihilate the State Legislatures, to force cotton to grow upon the tops of the Green Mountains, to freeze ice in Florida, to cut lumber on the broad Illinois prairie,--that I am in favor of all these ridiculous and impossible things.

It seems to me it is a complete answer to all this to ask if, when Congress did have the fashion of restricting slavery from free territory; when courts did have the fashion of deciding that taking a slave into a free country made him free,--I say it is a sufficient answer to ask if any of this ridiculous nonsense about consolidation and uniformity did actually follow. Who heard of any such thing because of the Ordinance of '87? because of the Missouri restriction? because of the numerous court decisions of that character?

Now, as to the Dred Scott decision; for upon that he makes his last point at me. He boldly takes ground in favor of that decision.

This is one half the onslaught, and one third of the entire plan of the campaign. I am opposed to that decision in a certain sense, but not in the sense which he puts it. I say that in so far as it decided in favor of Dred Scott's master, and against Dred Scott and his family, I do not propose to disturb or resist the decision.

I never have proposed to do any such thing. I think that in respect for judicial authority my humble history would not suffer in comparison with that of Judge Douglas. He would have the citizen conform his vote to that decision; the member of Congress, his; the President, his use of the veto power. He would make it a rule of political action for the people and all the departments of the government. I would not. By resisting it as a political rule, I disturb no right of property, create no disorder, excite no mobs.

When he spoke at Chicago, on Friday evening of last week, he made this same point upon me. On Saturday evening I replied, and reminded him of a Supreme Court decision which he opposed for at least several years. Last night, at Bloomington, he took some notice of that reply, but entirely forgot to remember that part of it.

He renews his onslaught upon me, forgetting to remember that I have turned the tables against himself on that very point. I renew the effort to draw his attention to it. I wish to stand erect before the country, as well as Judge Douglas, on this question of judicial authority; and therefore I add something to the authority in favor of my own position. I wish to show that I am sustained by authority, in addition to that heretofore presented. I do not expect to convince the Judge. It is part of the plan of his campaign, and he will cling to it with a desperate grip. Even turn it upon him,--the sharp point against him, and gaff him through,--he will still cling to it till he can invent some new dodge to take the place of it.

In public speaking it is tedious reading from documents; but I must beg to indulge the practice to a limited extent. I shall read from a letter written by Mr. Jefferson in 1820, and now to be found in the seventh volume of his correspondence, at page 177. It seems he had been presented by a gentleman of the name of Jarvis with a book, or essay, or periodical, called the Republican, and he was writing in acknowledgment of the present, and noting some of its contents. After expressing the hope that the work will produce a favorable effect upon the minds of the young, he proceeds to say:

"That it will have this tendency may be expected, and for that reason I feel an urgency to note what I deem an error in it, the more requiring notice as your opinion is strengthened by that of many others. You seem, in pages 84 and 148, to consider the judges as the ultimate arbiters of all constitutional questions,--a very dangerous doctrine indeed, and one which would place us under the despotism of an oligarchy. Our judges are as honest as other men, and not more so. They have, with others, the same passions for party, for power, and the privilege of their corps. Their maxim is, 'Boni judicis est ampliare jurisdictionem'; and their power is the more dangerous as they are in office for life, and not responsible, as the other functionaries are, to the elective control. The Constitution has erected no such single tribunal, knowing that,

to whatever hands confided, with the corruptions of time and party, its members would become despots. It has more wisely made all the departments co-equal and co-sovereign with themselves."

Thus we see the power claimed for the Supreme Court by Judge Douglas, Mr. Jefferson holds, would reduce us to the despotism of an oligarchy.

Now, I have said no more than this,--in fact, never quite so much as this; at least I am sustained by Mr. Jefferson.

Let us go a little further. You remember we once had a National Bank. Some one owed the bank a debt; he was sued, and sought to avoid payment on the ground that the bank was unconstitutional. The case went to the Supreme Court, and therein it was decided that the bank was constitutional. The whole Democratic party revolted against that decision. General Jackson himself asserted that he, as President, would not be bound to hold a National Bank to be constitutional, even though the court had decided it to be so. He fell in precisely with the view of Mr. Jefferson, and acted upon it under his official oath, in vetoing a charter for a National Bank. The declaration that Congress does not possess this constitutional power to charter a bank has gone into the Democratic platform, at their National Conventions, and was brought forward and reaffirmed in their last Convention at Cincinnati. They have contended for that declaration, in the very teeth of the Supreme Court, for more than a quarter of a century. In fact, they have reduced the decision to an absolute nullity. That decision, I repeat, is repudiated in the Cincinnati platform; and still, as if to show that effrontery can go no further, Judge Douglas vaunts in the very speeches in which he denounces me for opposing the Dred Scott decision that he stands on the Cincinnati platform.

Now, I wish to know what the Judge can charge upon me, with respect to decisions of the Supreme Court, which does not lie in all its length, breadth, and proportions at his own door. The plain truth is simply this: Judge Douglas is for Supreme Court decisions when he likes and against them when he does not like them. He is for the Dred Scott decision because it tends to nationalize slavery; because it is part of the original combination for that object. It so happens, singularly enough, that I never stood opposed to a decision of the Supreme Court till this, on the contrary, I have no recollection that he was ever particularly in favor of one till this. He never was in favor of any nor opposed to any, till the present one, which helps to nationalize slavery.

Free men of Sangamon, free men of Illinois, free men everywhere, judge ye between him and me upon this issue.

He says this Dred Scott case is a very small matter at most,--that it has no practical effect; that at best, or rather, I suppose, at worst, it is but an abstraction. I submit that the proposition that the thing which determines whether a man is free or a slave is rather concrete than abstract. I think you would conclude that it was, if your liberty depended upon it, and so would Judge Douglas, if his liberty depended upon it. But suppose it was on the question of spreading slavery over the new Territories that he considers it as being merely an abstract matter, and one of no practical importance.

How has the planting of slavery in new countries always been effected? It has now been decided that slavery cannot be kept out of our new Territories by any legal means. In what do our new Territories now differ in this respect from the old Colonies when slavery was first planted within them? It was planted, as Mr. Clay once declared, and as history proves true, by individual men, in spite of the wishes of the people; the Mother Government refusing to prohibit it, and withholding from the people of the Colonies the authority to prohibit it for themselves. Mr. Clay says this was one of the great and just causes of complaint against Great Britain by the Colonies, and the best apology we can now make for having the institution amongst us. In that precise condition our Nebraska politicians have at last succeeded in placing our own new Territories; the government will not prohibit slavery within them, nor allow the people to prohibit it.

I defy any man to find any difference between the policy which originally planted slavery in these Colonies and that policy which now prevails in our new Territories. If it does not go into them, it is only because no individual wishes it to go. The Judge indulged himself doubtless to-day with the question as to what I am going to do with or about the Dred Scott decision. Well, Judge, will you please tell me what you did about the bank decision? Will you not graciously allow us to do with the Dred Scott decision precisely as you did with the bank decision? You succeeded in breaking down the moral effect of that decision: did you find it necessary to amend the Constitution, or to set up a court of negroes in order to do it?

There is one other point. Judge Douglas has a very affectionate leaning toward the Americans and Old Whigs. Last evening, in a sort of weeping tone, he described to us a death-bed scene. He had been called to the side of Mr. Clay, in his last moments, in order that the genius of "popular sovereignty" might duly descend from the dying man and settle upon him, the living and most worthy successor. He could do no less than promise that he would devote the remainder of his life to "popular sovereignty"; and then the great statesman departs in peace. By this part of the "plan of the campaign" the Judge has evidently promised himself that tears shall be drawn down the cheeks of all Old Whigs, as large as half-grown apples.

Mr. Webster, too, was mentioned; but it did not quite come to a death-bed scene as to him. It would be amusing, if it were not disgusting, to see how quick these compromise-breakers administer on the political effects of their dead adversaries, trumping up claims never before heard of, and dividing the assets among themselves. If I should be found dead to-morrow morning, nothing but my insignificance could prevent a speech being made on my authority, before the end of next week. It so happens that in that "popular sovereignty" with which Mr. Clay was identified, the Missouri Compromise was expressly reversed; and it was a little singular if Mr. Clay cast his mantle upon Judge Douglas on purpose to have that compromise repealed.

Again, the Judge did not keep faith with Mr. Clay when he first brought in his Nebraska Bill. He left the Missouri Compromise unrepealed, and in his report accompanying the bill he told the world he did it on purpose. The manes of Mr. Clay must have been in great agony till thirty days later, when "popular sovereignty" stood forth in all its glory.

One more thing. Last night Judge Douglas tormented himself with horrors about my disposition to make negroes perfectly equal with white men in social and political relations. He did not stop to show that I have said any such thing, or that it legitimately follows from anything I have said, but he rushes on with his assertions. I adhere to the Declaration of Independence. If Judge Douglas and his friends are not willing to stand by it, let them come up and amend it. Let them make it read that all men are created equal except negroes. Let us have it decided whether the Declaration of Independence, in this blessed year of 1858, shall be thus amended. In his construction of the Declaration last year, he said it only meant that Americans in America were equal to Englishmen in England. Then, when I pointed out to him that by that rule he excludes the Germans, the Irish, the Portuguese, and all the other people who have come among us since the revolution, he reconstructs his construction. In his last speech he tells us it meant Europeans.

I press him a little further, and ask if it meant to include the Russians in Asia; or does he mean to exclude that vast population from the principles of our Declaration of Independence? I expect ere long he will introduce another amendment to his definition. He is not at all particular. He is satisfied with anything which does not endanger the nationalizing of negro slavery. It may draw white men down, but it must not lift negroes up.

Who shall say, "I am the superior, and you are the inferior"?

My declarations upon this subject of negro slavery may be misrepresented, but cannot be misunderstood. I have said that I do not understand the Declaration to mean that all men were created equal in all respects. They are not our equal in color; but I suppose that it does mean to declare that all men are equal in some respects; they are equal in their right to "life, liberty, and the pursuit of happiness." Certainly the negro is not our equal in color, perhaps not in many other respects; still, in the right to put into his mouth the bread that his own hands have earned, he is the equal of every other man, white or black. In pointing out that more has been given you, you cannot be justified in taking away the little which has been given him. All I ask for the negro is that if you do not like him, let him alone. If God gave him but little, that little let him enjoy.

When our government was established we had the institution of slavery among us. We were in a certain sense compelled to tolerate its existence. It was a sort of necessity. We had gone through our struggle and secured our own independence. The framers of the Constitution found the institution of slavery amongst their own institutions at the time. They found that by an effort to eradicate it they might lose much of what they had already gained. They were obliged to bow to the necessity. They gave power to Congress to abolish the slave trade at the end of twenty years. They also prohibited it in the Territories where it did not exist. They did what they could, and yielded to the necessity for the rest. I also yield to all which follows from that necessity. What I would most desire would be the separation of the white and black races.

One more point on this Springfield speech which Judge Douglas says he has read so carefully. I expressed my belief in the existence of a conspiracy to perpetuate and nationalize slavery. I did not profess to know it, nor do I now. I showed the part Judge Douglas had played in the string of facts constituting to my mind the proof of that conspiracy. I showed the parts played by others.

I charged that the people had been deceived into carrying the last Presidential election, by the impression that the people of the Territories might exclude slavery if they chose, when it was known in advance by the conspirators that the court was to decide that neither Congress nor the people could so exclude slavery. These charges are more distinctly made than anything else in the speech.

Judge Douglas has carefully read and reread that speech. He has not, so far as I know, contradicted those charges. In the two speeches which I heard he certainly did not. On this own tacit admission, I renew that charge. I charge him with having been a party to that conspiracy and to that deception for the sole purpose of nationalizing slavery.

CORRESPONDENCE BETWEEN LINCOLN AND DOUGLAS

[The following is the correspondence between the two rival candidates for the United States Senate]

MR. LINCOLN TO MR. DOUGLAS.

CHICAGO, ILL., July 24, 1558.

HON. S. A. DOUGLAS:

My dear Sir,--Will it be agreeable to you to make an arrangement for you and myself to divide time, and address the same audiences the present canvass? Mr. Judd, who will hand you this, is authorized to receive your answer; and, if agreeable to you, to enter into the terms of such arrangement.

Your obedient servant,

A. LINCOLN.

Mr. DOUGLAS TO Mr. LINCOLN.

BEMENT, PLATT Co., ILL., July 30, 1858.

Dear Sir,--Your letter dated yesterday, accepting my proposition for a joint discussion at one prominent point in each Congressional District, as stated in my previous letter, was received this morning.

The times and places designated are as follows:

Ottawa, La Salle County August 21st, 1858. Freeport, Stephenson County " 27th, Jonesboro, Union County, September 15th, Charleston, Coles County " 18th, Galesburgh, Knox County October 7th, Quincy, Adams County " 13th, Alton, Madison County " 15th,

I agree to your suggestion that we shall alternately open and close the discussion. I will speak at Ottawa one hour, you can reply, occupying an hour and a half, and I will then follow for half an hour. At Freeport, you shall open the discussion and speak one hour; I will follow for an hour and a half, and you can then reply for half an hour. We will alternate in like manner in each successive place.

Very respectfully, your obedient servant,

S. A. DOUGLAS.

Mr. LINCOLN TO Mr. DOUGLAS.

SPRINGFIELD, July 31, 1858. HON. S. A. DOUGLAS:

Dear Sir,--Yours of yesterday, naming places, times, and terms for joint discussions between us, was received this morning. Although, by the terms, as you propose, you take four openings and closes, to my three, I accede, and thus close the arrangement. I direct this to you at Hillsborough, and shall try to have both your letter and this appear in the Journal and Register of Monday morning.

Your obedient servant,

A. LINCOLN.

FIRST JOINT DEBATE, AT OTTAWA,

AUGUST 21, 1858

Mr. LINCOLN'S REPLY

MY FELLOW-CITIZENS:--When a man hears himself somewhat misrepresented, it provokes him, at least, I find it so with myself; but when misrepresentation becomes very gross and palpable, it is more apt to amuse him. The first thing I see fit to notice is the fact that Judge Douglas alleges, after running through the history of the old Democratic and the old Whig parties, that Judge Trumbull and myself made an arrangement in 1854, by which I was to have the place of General Shields in the United States Senate, and Judge Trumbull was to have the place of Judge Douglas. Now, all I have to say upon that subject is that I think no man not even Judge Douglas can prove it, because it is not true. I have no doubt he is "conscientious" in saying it. As to those resolutions that he took such a length of time to read, as being the platform of the Republican party in 1854, I say I never had anything to do with them, and I think Trumbull never had. Judge Douglas cannot show that either of us ever did have anything to do with them.

I believe this is true about those resolutions: There was a call for a convention to form a Republican party at Springfield, and I think that my friend Mr. Lovejoy, who is here upon this stand, had a hand in it. I think this is true, and I think if he will remember accurately he will be able to recollect that he tried to get me into it, and I would not go in. I believe it is also true that I went away from Springfield when the convention was in session, to attend court in Tazewell county. It is true they did place

my name, though without authority, upon the committee, and afterward wrote me to attend the meeting of the committee; but I refused to do so, and I never had anything to do with that organization. This is the plain truth about all that matter of the resolutions.

Now, about this story that Judge Douglas tells of Trumbull bargaining to sell out the old Democratic party, and Lincoln agreeing to sell out the old Whig party, I have the means of knowing about that: Judge Douglas cannot have; and I know there is no substance to it whatever. Yet I have no doubt he is "conscientious" about it. I know that after Mr. Lovejoy got into the Legislature that winter, he complained of me that I had told all the old Whigs of his district that the old Whig party was good enough for them, and some of them voted against him because I told them so. Now, I have no means of totally disproving such charges as this which the Judge makes. A man cannot prove a negative; but he has a right to claim that when a man makes an affirmative charge, he must offer some proof to show the truth of what he says. I certainly cannot introduce testimony to show the negative about things, but I have a right to claim that if a man says he knows a thing, then he must show how he knows it. I always have a right to claim this, and it is not satisfactory to me that he may be "conscientious" on the subject.

Now, gentlemen, I hate to waste my time on such things; but in regard to that general Abolition tilt that Judge Douglas makes, when he says that I was engaged at that time in selling out and Abolitionizing the old Whig party, I hope you will permit me to read a part of a printed speech that I made then at Peoria, which will show altogether a different view of the position I took in that contest of 1854.

[Voice: "Put on your specs."]

Mr. LINCOLN: Yes, sir, I am obliged to do so; I am no longer a young man.

"This is the repeal of the Missouri Compromise. The foregoing history may not be precisely accurate in every particular, but I am sure it is sufficiently so for all the uses I shall attempt to make of it, and in it we have before us the chief materials enabling us to correctly judge whether the repeal of the Missouri Compromise is right or wrong.

"I think, and shall try to show, that it is wrong--wrong in its direct effect, letting slavery into Kansas and Nebraska, and wrong in its prospective principle, allowing it to spread to every other part of the wide world where men can be found inclined to take it.

"This declared indifference, but, as I must think, covert real zeal for the spread of slavery, I cannot but hate. I hate it because of the monstrous injustice of slavery itself. I hate it because it deprives our republican example of its just influence in the world,--enables the enemies of free institutions, with plausibility, to taunt us as hypocrites; causes the real friends of freedom to doubt our sincerity, and especially because it forces so many really good men amongst ourselves into an open war with the very fundamental principles of civil liberty, criticizing the Declaration of Independence, and insisting that there is no right principle of action but self-interest.

"Before proceeding, let me say I think I have no prejudice against the Southern people. They are just what we would be in their situation. If slavery did not now exist among them, they would not introduce it. If it did now exist among us, we should not instantly give it up. This I believe of the masses north and south. Doubtless there are individuals on both sides who would not hold slaves under any circumstances; and others who would gladly introduce slavery anew, if it were out of existence. We know that some Southern men do free their slaves, go north, and become tip-top Abolitionists; while some Northern ones go south and become most cruel slave-masters.

"When Southern people tell us they are no more responsible for the origin of slavery than we, I acknowledge the fact. When it is said that the institution exists, and that it is very difficult to get rid of it, in any satisfactory way, I can understand and appreciate the saying. I will not blame them for not doing what I should not know how to do myself. If all earthly power were given me, I should not know what to do, as to the existing institution. My first impulse would be to free all the slaves and send them to Liberia,--to their own native land. But a moment's reflection would convince me that whatever of high hope (as I think there is) there may be in this in the long term, its sudden execution is impossible. If they were all landed there in a day, they would all perish in the next ten days; and there are not surplus shipping and surplus money enough in the world to carry them there in many times ten days. What then? Free them all and keep them among us as underlings? Is it quite certain that this betters their condition? I think I would not hold one in slavery, at any rate; yet the point is not clear enough to me to denounce people upon. What next? Free them, and make them politically and socially our equals? My own feelings will not admit of this; and if mine would, we well know that those of the great mass of white people will not. Whether this feeling accords with justice and sound judgment, is not the sole question, if, indeed, it is any part of it. A universal feeling, whether well or ill founded, cannot be safely disregarded. We cannot, then, make them equals. It does seem to me that systems of gradual emancipation might be adopted; but for their tardiness in this I will not undertake to judge our brethren of the South.

"When they remind us of their constitutional rights, I acknowledge them, not grudgingly, but fully and fairly; and I would give them any legislation for the reclaiming of their fugitives, which should not, in its stringency, be more likely to carry a free man into slavery than Our ordinary criminal laws are to hang an innocent one.

"But all this, to my judgment, furnishes no more excuse for permitting slavery to go into our own free territory than it would for reviving the African slave-trade by law. The law which forbids the bringing of slaves from Africa, and that which has so long forbid the taking of them to Nebraska, can hardly be distinguished on any moral principle; and the repeal of the former could find quite as plausible excuses as that of the latter."

I have reason to know that Judge Douglas knows that I said this. I think he has the answer here to one of the questions he put to me. I do not mean to allow him to catechize me unless he pays back for it in kind. I will not answer questions one after

another, unless he reciprocates; but as he has made this inquiry, and I have answered it before, he has got it without my getting anything in return. He has got my answer on the Fugitive Slave law.

Now, gentlemen, I don't want to read at any greater length; but this is the true complexion of all I have ever said in regard to the institution of slavery and the black race. This is the whole of it; and anything that argues me into his idea of perfect social and political equality with the negro is but a specious and fantastic arrangement of words, by which a man can prove a horse-chestnut to be a chestnut horse. I will say here, while upon this subject, that I have no purpose, directly or indirectly, to interfere with the institution of slavery in the States where it exists. I believe I have no lawful right to do so, and I have no inclination to do so. I have no purpose to introduce political and social equality between the white and the black races. There is a physical difference between the two which, in my judgment, will probably forever forbid their living together upon the footing of perfect equality; and inasmuch as it becomes a necessity that there must be a difference, I, as well as Judge Douglas, am in favor of the race to which I belong having the superior position. I have never said anything to the contrary, but I hold that, notwithstanding all this, there is no reason in the world why the negro is not entitled to all the natural rights enumerated in the Declaration of Independence, the right to life, liberty, and the pursuit of happiness. I hold that he is as much entitled to these as the white man. I agree with Judge Douglas he is not my equal in many respects, certainly not in color, perhaps not in moral or intellectual endowment. But in the right to eat the bread, without the leave of anybody else, which his own hand earns, he is my equal, and the equal of Judge Douglas, and the equal of every living man.

Now I pass on to consider one or two more of these little follies. The Judge is woefully at fault about his early friend Lincoln being a "grocery-keeper." I don't know as it would be a great sin, if I had been; but he is mistaken. Lincoln never kept a grocery anywhere in the world. It is true that Lincoln did work the latter part of one winter in a little stillhouse, up at the head of a hollow. And so I think my friend the Judge is equally at fault when he charges me at the time when I was in Congress of having opposed our soldiers who were fighting in the Mexican war. The Judge did not make his charge very distinctly, but I can tell you what he can prove, by referring to the record. You remember I was an old Whig, and whenever the Democratic party tried to get me to vote that the war had been righteously begun by the President, I would not do it. But whenever they asked for any money, or landwarrants, or anything to pay the soldiers there, during all that time, I gave the same vote that Judge Douglas did. You can think as you please as to whether that was consistent. Such is the truth, and the Judge has the right to make all he can out of it. But when he, by a general charge, conveys the idea that I withheld supplies from the soldiers who were fighting in the Mexican war, or did anything else to hinder the soldiers, he is, to say the least, grossly and altogether mistaken, as a consultation of the records will prove to him.

As I have not used up so much of my time as I had supposed, I will dwell a little longer upon one or two of these minor topics upon which the Judge has spoken. He

has read from my speech in Springfield, in which I say that "a house divided against itself cannot stand" Does the Judge say it can stand? I don't know whether he does or not. The Judge does not seem to be attending to me just now, but I would like to know if it is his opinion that a house divided against itself can stand. If he does, then there is a question of veracity, not between him and me, but between the Judge and an Authority of a somewhat higher character.

Now, my friends, I ask your attention to this matter for the purpose of saying something seriously. I know that the Judge may readily enough agree with me that the maxim which was put forth by the Savior is true, but he may allege that I misapply it; and the Judge has a right to urge that, in my application, I do misapply it, and then I have a right to show that I do not misapply it, When he undertakes to say that because I think this nation, so far as the question of slavery is concerned, will all become one thing or all the other, I am in favor of bringing about a dead uniformity in the various States, in all their institutions, he argues erroneously. The great variety of the local institutions in the States, springing from differences in the soil, differences in the face of the country, and in the climate, are bonds of Union. They do not make "a house divided against itself," but they make a house united. If they produce in one section of the country what is called for, by the wants of another section, and this other section can supply the wants of the first, they are not matters of discord, but bonds of union, true bonds of union. But can this question of slavery be considered as among these varieties in the institutions of the country? I leave it to you to say whether, in the history of our government, this institution of slavery has not always failed to be a bond of union, and, on the contrary, been an apple of discord and an element of division in the house. I ask you to consider whether, so long as the moral constitution of men's minds shall continue to be the same, after this generation and assemblage shall sink into the grave, and another race shall arise, with the same moral and intellectual development we have, whether, if that institution is standing in the same irritating position in which it now is, it will not continue an element of division? If so, then I have a right to say that, in regard to this question, the Union is a house divided against itself; and when the Judge reminds me that I have often said to him that the institution of slavery has existed for eighty years in some States, and yet it does not exist in some others, I agree to the fact, and I account for it by looking at the position in which our fathers originally placed it--restricting it from the new Territories where it had not gone, and legislating to cut off its source by the abrogation of the slave trade, thus putting the seal of legislation against its spread. The public mind did rest in the belief that it was in the course of ultimate extinction. But lately, I think--and in this I charge nothing on the Judge's motives--lately, I think that he, and those acting with him, have placed that institution on a new basis, which looks to the perpetuity and nationalization of slavery. And while it is placed upon this new basis, I say, and I have said, that I believe we shall not have peace upon the question until the opponents of slavery arrest the further spread of it, and place it where the public mind shall rest in the belief that it is in the course of ultimate extinction; or, on the other hand, that its advocates will push it forward until it shall become alike lawful in all the States, old as well as new, North as well as South. Now, I believe if we could arrest the spread, and place it where Washington and Jefferson

and Madison placed it, it would be in the course of ultimate extinction, and the public mind would, as for eighty years past, believe that it was in the course of ultimate extinction. The crisis would be past, and the institution might be let alone for a hundred years, if it should live so long, in the States where it exists; yet it would be going out of existence in the way best for both the black and the white races.

[A voice: "Then do you repudiate popular sovereignty?"]

Well, then, let us talk about popular sovereignty! what is popular sovereignty? Is it the right of the people to have slavery or not have it, as they see fit, in the Territories? I will state--and I have an able man to watch me--my understanding is that popular sovereignty, as now applied to the question of slavery, does allow the people of a Territory to have slavery if they want to, but does not allow them not to have it if they do not want it. I do not mean that if this vast concourse of people were in a Territory of the United States, any one of them would be obliged to have a slave if he did not want one; but I do say that, as I understand the Dred Scott decision, if any one man wants slaves, all the rest have no way of keeping that one man from holding them.

When I made my speech at Springfield, of which the Judge complains, and from which he quotes, I really was not thinking of the things which he ascribes to me at all. I had no thought in the world that I was doing anything to bring about a war between the free and slave states. I had no thought in the world that I was doing anything to bring about a political and social equality of the black and white races. It never occurred to me that I was doing anything or favoring anything to reduce to a dead uniformity all the local institutions of the various States. But I must say, in all fairness to him, if he thinks I am doing something which leads to these bad results, it is none the better that I did not mean it. It is just as fatal to the country, if I have any influence in producing it, whether I intend it or not. But can it be true that placing this institution upon the original basis--the basis upon which our fathers placed it--can have any tendency to set the Northern and the Southern States at war with one another, or that it can have any tendency to make the people of Vermont raise sugar-cane, because they raise it in Louisiana, or that it can compel the people of Illinois to cut pine logs on the Grand Prairie, where they will not grow, because they cut pine logs in Maine, where they do grow? The Judge says this is a new principle started in regard to this question. Does the Judge claim that he is working on the plan of the founders of government? I think he says in some of his speeches indeed, I have one here now--that he saw evidence of a policy to allow slavery to be south of a certain line, while north of it it should be excluded, and he saw an indisposition on the part of the country to stand upon that policy, and therefore he set about studying the subject upon original principles, and upon original principles he got up the Nebraska Bill! I am fighting it upon these "original principles," fighting it in the Jeffersonian, Washingtonian, and Madisonian fashion.

Now, my friends, I wish you to attend for a little while to one or two other things in that Springfield speech. My main object was to show, so far as my humble ability was capable of showing, to the people of this country what I believed was the truth,--that there was a tendency, if not a conspiracy, among those who have engineered this

slavery question for the last four or five years, to make slavery perpetual and universal in this nation. Having made that speech principally for that object, after arranging the evidences that I thought tended to prove my proposition, I concluded with this bit of comment:

"We cannot absolutely know that these exact adaptations are the result of preconcert; but when we see a lot of framed timbers, different portions of which we know have been gotten out at different times and places, and by different workmen--Stephen, Franklin, Roger, and James, for instance,--and when we see these timbers joined together, and see they exactly make the frame of a house or a mill, all the tenons and mortises exactly fitting, and all the lengths and proportions of the different pieces exactly adapted to their respective places, and not a piece too many or too few,--not omitting even the scaffolding,--or if a single piece be lacking, we see the place in the frame exactly fitted and prepared yet to bring such piece in,--in such a case we feel it impossible not to believe that Stephen and Franklin and Roger and James all understood one another from the beginning, and all worked upon a common plan or draft drawn before the first blow was struck."

When my friend Judge Douglas came to Chicago on the 9th of July, this speech having been delivered on the 16th of June, he made an harangue there, in which he took hold of this speech of mine, showing that he had carefully read it; and while he paid no attention to this matter at all, but complimented me as being a "kind, amiable, and intelligent gentleman," notwithstanding I had said this, he goes on and eliminates, or draws out, from my speech this tendency of mine to set the States at war with one another, to make all the institutions uniform, and set the niggers and white people to marrying together. Then, as the Judge had complimented me with these pleasant titles (I must confess to my weakness), I was a little "taken," for it came from a great man. I was not very much accustomed to flattery, and it came the sweeter to me. I was rather like the Hoosier, with the gingerbread, when he said he reckoned he loved it better than any other man, and got less of it. As the Judge had so flattered me, I could not make up my mind that he meant to deal unfairly with me; so I went to work to show him that he misunderstood the whole scope of my speech, and that I really never intended to set the people at war with one another. As an illustration, the next time I met him, which was at Springfield, I used this expression, that I claimed no right under the Constitution, nor had I any inclination, to enter into the slave States and interfere with the institutions of slavery. He says upon that: Lincoln will not enter into the slave States, but will go to the banks of the Ohio, on this side, and shoot over! He runs on, step by step, in the horse-chestnut style of argument, until in the Springfield speech he says: "Unless he shall be successful in firing his batteries until he shall have extinguished slavery in all the States the Union shall be dissolved." Now, I don't think that was exactly the way to treat "a kind, amiable, intelligent gentleman." I know if I had asked the Judge to show when or where it was I had said that, if I didn't succeed in firing into the slave States until slavery should be extinguished, the Union should be dissolved, he could not have shown it. I understand what he would do. He would say: I don't mean to quote from you, but this was the result of what you say. But I have the right to ask, and I do ask now, Did you not put it in such a form that an ordinary reader or listener would take

it as an expression from me?

In a speech at Springfield, on the night of the 17th, I thought I might as well attend to my own business a little, and I recalled his attention as well as I could to this charge of conspiracy to nationalize slavery. I called his attention to the fact that he had acknowledged in my hearing twice that he had carefully read the speech, and, in the language of the lawyers, as he had twice read the speech, and still had put in no plea or answer, I took a default on him. I insisted that I had a right then to renew that charge of conspiracy. Ten days afterward I met the Judge at Clinton,--that is to say, I was on the ground, but not in the discussion,--and heard him make a speech. Then he comes in with his plea to this charge, for the first time; and his plea when put in, as well as I can recollect it, amounted to this: that he never had any talk with Judge Taney or the President of the United States with regard to the Dred Scott decision before it was made. I (Lincoln) ought to know that the man who makes a charge without knowing it to be true falsifies as much as he who knowingly tells a falsehood; and, lastly, that he would pronounce the whole thing a falsehood; but, he would make no personal application of the charge of falsehood, not because of any regard for the "kind, amiable, intelligent gentleman," but because of his own personal self-respect! I have understood since then (but [turning to Judge Douglas] will not hold the Judge to it if he is not willing) that he has broken through the "self-respect," and has got to saying the thing out. The Judge nods to me that it is so. It is fortunate for me that I can keep as good-humored as I do, when the Judge acknowledges that he has been trying to make a question of veracity with me. I know the Judge is a great man, while I am only a small man, but I feel that I have got him. I demur to that plea. I waive all objections that it was not filed till after default was taken, and demur to it upon the merits. What if Judge Douglas never did talk with Chief Justice Taney and the President before the Dred Scott decision was made, does it follow that he could not have had as perfect an understanding without talking as with it? I am not disposed to stand upon my legal advantage. I am disposed to take his denial as being like an answer in chancery, that he neither had any knowledge, information, or belief in the existence of such a conspiracy. I am disposed to take his answer as being as broad as though he had put it in these words. And now, I ask, even if he had done so, have not I a right to prove it on him, and to offer the evidence of more than two witnesses, by whom to prove it; and if the evidence proves the existence of the conspiracy, does his broader answer denying all knowledge, information, or belief, disturb the fact? It can only show that he was used by conspirators, and was not a leader of them.

Now, in regard to his reminding me of the moral rule that persons who tell what they do not know to be true falsify as much as those who knowingly tell falsehoods. I remember the rule, and it must be borne in mind that in what I have read to you, I do not say that I know such a conspiracy to exist. To that I reply, I believe it. If the Judge says that I do not believe it, then he says what he does not know, and falls within his own rule, that he who asserts a thing which he does not know to be true, falsifies as much as he who knowingly tells a falsehood. I want to call your attention to a little discussion on that branch of the case, and the evidence which brought my mind to the conclusion which I expressed as my belief. If, in arraying that evidence I had stated anything which was false or erroneous, it needed but that Judge Douglas should point

it out, and I would have taken it back, with all the kindness in the world. I do not deal in that way. If I have brought forward anything not a fact, if he will point it out, it will not even ruffle me to take it back. But if he will not point out anything erroneous in the evidence, is it not rather for him to show, by a comparison of the evidence, that I have reasoned falsely, than to call the "kind, amiable, intelligent gentleman" a liar? If I have reasoned to a false conclusion, it is the vocation of an able debater to show by argument that I have wandered to an erroneous conclusion. I want to ask your attention to a portion of the Nebraska Bill, which Judge Douglas has quoted:

"It being the true intent and meaning of this Act, not to legislate slavery into any Territory or State, nor to exclude it therefrom, but to leave the people thereof perfectly free to form and regulate their domestic institutions in their own way, subject only to the Constitution of the United States."

Thereupon Judge Douglas and others began to argue in favor of "popular sovereignty," the right of the people to have slaves if they wanted them, and to exclude slavery if they did not want them. "But," said, in substance, a Senator from Ohio (Mr. Chase, I believe), "we more than suspect that you do not mean to allow the people to exclude slavery if they wish to; and if you do mean it, accept an amendment which I propose, expressly authorizing the people to exclude slavery."

I believe I have the amendment here before me, which was offered, and under which the people of the Territory, through their representatives, might, if they saw fit, prohibit the existence of slavery therein. And now I state it as a fact, to be taken back if there is any mistake about it, that Judge Douglas and those acting with him voted that amendment down. I now think that those men who voted it down had a real reason for doing so. They know what that reason was. It looks to us, since we have seen the Dred Scott decision pronounced, holding that "under the Constitution" the people cannot exclude slavery, I say it looks to outsiders, poor, simple, "amiable, intelligent gentlemen," as though the niche was left as a place to put that Dred Scott decision in,--a niche which would have been spoiled by adopting the amendment. And now, I say again, if this was not the reason, it will avail the Judge much more to calmly and good-humoredly point out to these people what that other reason was for voting the amendment down, than, swelling himself up, to vociferate that he may be provoked to call somebody a liar.

Again: There is in that same quotation from the Nebraska Bill this clause: "It being the true intent and meaning of this bill not to legislate slavery into any Territory or State." I have always been puzzled to know what business the word "State" had in that connection. Judge Douglas knows. He put it there. He knows what he put it there for. We outsiders cannot say what he put it there for. The law they were passing was not about States, and was not making provisions for States. What was it placed there for? After seeing the Dred Scott decision, which holds that the people cannot exclude slavery from a Territory, if another Dred Scott decision shall come, holding that they cannot exclude it from a State, we shall discover that when the word was originally put there, it was in view of something which was to come in due time, we shall see that it was the other half of something. I now say again, if there is any different reason for putting it there, Judge Douglas, in a good-humored way, without calling

anybody a liar, can tell what the reason was.

When the Judge spoke at Clinton, he came very near making a charge of falsehood against me. He used, as I found it printed in a newspaper, which, I remember, was very nearly like the real speech, the following language:

"I did not answer the charge [of conspiracy] before, for the reason that I did not suppose there was a man in America with a heart so corrupt as to believe such a charge could be true. I have too much respect for Mr. Lincoln to suppose he is serious in making the charge."

I confess this is rather a curious view, that out of respect for me he should consider I was making what I deemed rather a grave charge in fun. I confess it strikes me rather strangely. But I let it pass. As the Judge did not for a moment believe that there was a man in America whose heart was so "corrupt" as to make such a charge, and as he places me among the "men in America" who have hearts base enough to make such a charge, I hope he will excuse me if I hunt out another charge very like this; and if it should turn out that in hunting I should find that other, and it should turn out to be Judge Douglas himself who made it, I hope he will reconsider this question of the deep corruption of heart he has thought fit to ascribe to me. In Judge Douglas's speech of March 22, 1858, which I hold in my hand, he says:

"In this connection there is another topic to which I desire to allude. I seldom refer to the course of newspapers, or notice the articles which they publish in regard to myself; but the course of the Washington Union has been so extraordinary for the last two or three months, that I think it well enough to make some allusion to it. It has read me out of the Democratic party every other day, at least for two or three months, and keeps reading me out, and, as if it had not succeeded, still continues to read me out, using such terms as 'traitor,' 'renegade,' 'deserter,' and other kind and polite epithets of that nature. Sir, I have no vindication to make of my Democracy against the Washington Union, or any other newspapers. I am willing to allow my history and action for the last twenty years to speak for themselves as to my political principles and my fidelity to political obligations. The Washington Union has a personal grievance. When its editor was nominated for public printer, I declined to vote for him, and stated that at some time I might give my reasons for doing so. Since I declined to give that vote, this scurrilous abuse, these vindictive and constant attacks have been repeated almost daily on me. Will any friend from Michigan read the article to which I allude?"

This is a part of the speech. You must excuse me from reading the entire article of the Washington Union, as Mr. Stuart read it for Mr. Douglas. The Judge goes on and sums up, as I think, correctly:

"Mr. President, you here find several distinct propositions advanced boldly by the Washington Union editorially, and apparently authoritatively; and any man who questions any of them is denounced as an Abolitionist, a Free-soiler, a fanatic. The propositions are, first, that the primary object of all government at its original institution is the protection of person and property; second, that the Constitution of the United States declares that the citizens of each State shall be entitled to all the

privileges and immunities of citizens in the several States; and that, therefore, thirdly, all State laws, whether organic or otherwise, which prohibit the citizens of one State from settling in another with their slave property, and especially declaring it forfeited, are direct violations of the original intention of the government and Constitution of the United States; and, fourth, that the emancipation of the slaves of the Northern States was a gross outrage of the rights of property, inasmuch as it was involuntarily done on the part of the owner.

"Remember that this article was published in the Union on the 17th of November, and on the 18th appeared the first article giving the adhesion of the Union, to the Lecompton Constitution. It was in these words:

"KANSAS AND HER CONSTITUTION.--The vexed question is settled. The problem is saved. The dead point of danger is passed. All serious trouble to Kansas affairs is over and gone..."

And a column nearly of the same sort. Then, when you come to look into the Lecompton Constitution, you find the same doctrine incorporated in it which was put forth editorially in the Union. What is it?

"ARTICLE 7, Section I. The right of property is before and higher than any constitutional sanction; and the right of the owner of a slave to such slave and its increase is the same and as inviolable as the right of the owner of any property whatever."

Then in the schedule is a provision that the Constitution may be amended after 1864 by a two-thirds vote:

"But no alteration shall be made to affect the right of property in the ownership of slaves."

"It will be seen by these clauses in the Lecompton Constitution that they are identical in spirit with the authoritative article in the Washington Union of the day previous to its indorsement of this Constitution."

I pass over some portions of the speech, and I hope that any one who feels interested in this matter will read the entire section of the speech, and see whether I do the Judge injustice. He proceeds:

"When I saw that article in the Union of the 17th of November, followed by the glorification of the Lecompton Constitution on the 10th of November, and this clause in the Constitution asserting the doctrine that a State has no right to prohibit slavery within its limits, I saw that there was a fatal blow being struck at the sovereignty of the States of this Union."

I stop the quotation there, again requesting that it may all be read. I have read all of the portion I desire to comment upon. What is this charge that the Judge thinks I must have a very corrupt heart to make? It was a purpose on the part of certain high functionaries to make it impossible for the people of one State to prohibit the people of any other State from entering it with their "property," so called, and making it a slave State. In other words, it was a charge implying a design to make the institution

of slavery national. And now I ask your attention to what Judge Douglas has himself done here. I know he made that part of the speech as a reason why he had refused to vote for a certain man for public printer; but when we get at it, the charge itself is the very one I made against him, that he thinks I am so corrupt for uttering. Now, whom does he make that charge against? Does he make it against that newspaper editor merely? No; he says it is identical in spirit with the Lecompton Constitution, and so the framers of that Constitution are brought in with the editor of the newspaper in that "fatal blow being struck." He did not call it a "conspiracy." In his language, it is a "fatal blow being struck." And if the words carry the meaning better when changed from a "conspiracy" into a "fatal blow being struck," I will change my expression, and call it "fatal blow being struck." We see the charge made not merely against the editor of the Union, but all the framers of the Lecompton Constitution; and not only so, but the article was an authoritative article. By whose authority? Is there any question but he means it was by the authority of the President and his Cabinet,--the Administration?

Is there any sort of question but he means to make that charge? Then there are the editors of the Union, the framers of the Lecompton Constitution, the President of the United States and his Cabinet, and all the supporters of the Lecompton Constitution, in Congress and out of Congress, who are all involved in this "fatal blow being struck." I commend to Judge Douglas's consideration the question of how corrupt a man's heart must be to make such a charge!

Now, my friends, I have but one branch of the subject, in the little time I have left, to which to call your attention; and as I shall come to a close at the end of that branch, it is probable that I shall not occupy quite all the time allotted to me. Although on these questions I would like to talk twice as long as I have, I could not enter upon another head and discuss it properly without running over my time. I ask the attention of the people here assembled and elsewhere to the course that Judge Douglas is pursuing every day as bearing upon this question of making slavery national. Not going back to the records, but taking the speeches he makes, the speeches he made yesterday and day before, and makes constantly all over the country, I ask your attention to them. In the first place, what is necessary to make the institution national? Not war. There is no danger that the people of Kentucky will shoulder their muskets, and, with a young nigger stuck on every bayonet, march into Illinois and force them upon us. There is no danger of our going over there and making war upon them. Then what is necessary for the nationalization of slavery? It is simply the next Dred Scott decision. It is merely for the Supreme Court to decide that no State under the Constitution can exclude it, just as they have already decided that under the Constitution neither Congress nor the Territorial Legislature can do it. When that is decided and acquiesced in, the whole thing is done. This being true, and this being the way, as I think, that slavery is to be made national, let us consider what Judge Douglas is doing every day to that end. In the first place, let us see what influence he is exerting on public sentiment. In this and like communities, public sentiment is everything. With public sentiment, nothing can fail; without it, nothing can succeed. Consequently, he who moulds public sentiment goes deeper than he who enacts statutes or pronounces decisions. He makes statutes and decisions

possible or impossible to be executed. This must be borne in mind, as also the additional fact that Judge Douglas is a man of vast influence, so great that it is enough for many men to profess to believe anything when they once find out Judge Douglas professes to believe it. Consider also the attitude he occupies at the head of a large party,--a party which he claims has a majority of all the voters in the country. This man sticks to a decision which forbids the people of a Territory from excluding slavery, and he does so, not because he says it is right in itself,--he does not give any opinion on that,--but because it has been decided by the court; and being decided by the court, he is, and you are, bound to take it in your political action as law, not that he judges at all of its merits, but because a decision of the court is to him a "Thus saith the Lord." He places it on that ground alone; and you will bear in mind that thus committing himself unreservedly to this decision commits him to the next one just as firmly as to this. He did not commit himself on account of the merit or demerit of the decision, but it is a "Thus saith the Lord." The next decision, as much as this, will be a "Thus saith the Lord." There is nothing that can divert or turn him away from this decision. It is nothing that I point out to him that his great prototype, General Jackson, did not believe in the binding force of decisions. It is nothing to him that Jefferson did not so believe. I have said that I have often heard him approve of Jackson's course in disregarding the decision of the Supreme Court pronouncing a National Bank constitutional. He says I did not hear him say so. He denies the accuracy of my recollection. I say he ought to know better than I, but I will make no question about this thing, though it still seems to me that I heard him say it twenty times. I will tell him, though, that he now claims to stand on the Cincinnati platform, which affirms that Congress cannot charter a National Bank, in the teeth of that old standing decision that Congress can charter a bank. And I remind him of another piece of history on the question of respect for judicial decisions, and it is a piece of Illinois history belonging to a time when the large party to which Judge Douglas belonged were displeased with a decision of the Supreme Court of Illinois, because they had decided that a Governor could not remove a Secretary of State. You will find the whole story in Ford's History of Illinois, and I know that Judge Douglas will not deny that he was then in favor of over-slaughing that decision by the mode of adding five new judges, so as to vote down the four old ones. Not only so, but it ended in the Judge's sitting down on that very bench as one of the five new judges to break down the four old ones It was in this way precisely that he got his title of judge. Now, when the Judge tells me that men appointed conditionally to sit as members of a court will have to be catechized beforehand upon some subject, I say, "You know, Judge; you have tried it." When he says a court of this kind will lose the confidence of all men, will be prostituted and disgraced by such a proceeding, I say, "You know best, Judge; you have been through the mill." But I cannot shake Judge Douglas's teeth loose from the Dred Scott decision. Like some obstinate animal (I mean no disrespect) that will hang on when he has once got his teeth fixed, you may cut off a leg, or you may tear away an arm, still he will not relax his hold. And so I may point out to the Judge, and say that he is bespattered all over, from the beginning of his political life to the present time, with attacks upon judicial decisions; I may cut off limb after limb of his public record, and strive to wrench him from a single dictum of the court,--yet I cannot divert him from it. He hangs, to the last, to the Dred Scott decision. These

things show there is a purpose strong as death and eternity for which he adheres to this decision, and for which he will adhere to all other decisions of the same court.

[A HIBERNIAN: "Give us something besides Dred Scott."]

Yes; no doubt you want to hear something that don't hurt. Now, having spoken of the Dred Scott decision, one more word, and I am done. Henry Clay, my beau-ideal of a statesman, the man for whom I fought all my humble life, Henry Clay once said of a class of men who would repress all tendencies to liberty and ultimate emancipation that they must, if they would do this, go back to the era of our Independence, and muzzle the cannon which thunders its annual joyous return; they must blow out the moral lights around us; they must penetrate the human soul, and eradicate there the love of liberty; and then, and not till then, could they perpetuate slavery in this country! To my thinking, Judge Douglas is, by his example and vast influence, doing that very thing in this community, when he says that the negro has nothing in the Declaration of Independence. Henry Clay plainly understood the contrary. Judge Douglas is going back to the era of our Revolution, and, to the extent of his ability, muzzling the cannon which thunders its annual joyous return. When he invites any people, willing to have slavery, to establish it, he is blowing out the moral lights around us. When he says he "cares not whether slavery is voted down or up,"--that it is a sacred right of self-government,--he is, in my judgment, penetrating the human soul and eradicating the light of reason and the love of liberty in this American people. And now I will only say that when, by all these means and appliances, Judge Douglas shall succeed in bringing public sentiment to an exact accordance with his own views; when these vast assemblages shall echo back all these sentiments; when they shall come to repeat his views and to avow his principles, and to say all that he says on these mighty questions,--then it needs only the formality of the second Dred Scott decision, which he indorses in advance, to make slavery alike lawful in all the States, old as well as new, North as well as South.

My friends, that ends the chapter. The Judge can take his half-hour.

SECOND JOINT DEBATE, AT FREEPORT,

AUGUST 27, 1858

LADIES AND GENTLEMEN:--On Saturday last, Judge Douglas and myself first met in public discussion. He spoke one hour, I an hour and a half, and he replied for half an hour. The order is now reversed. I am to speak an hour, he an hour and a half, and then I am to reply for half an hour. I propose to devote myself during the first hour to the scope of what was brought within the range of his half-hour speech at Ottawa. Of course there was brought within the scope in that half-hour's speech something of his own opening speech. In the course of that opening argument Judge Douglas proposed to me seven distinct interrogatories. In my speech of an hour and a half, I attended to some other parts of his speech, and incidentally, as I thought, intimated to him that I would answer the rest of his interrogatories on condition only that he should agree to answer as many for me. He made no intimation at the time of the proposition, nor did

he in his reply allude at all to that suggestion of mine. I do him no injustice in saying that he occupied at least half of his reply in dealing with me as though I had refused to answer his interrogatories. I now propose that I will answer any of the interrogatories, upon condition that he will answer questions from me not exceeding the same number. I give him an opportunity to respond.

The Judge remains silent. I now say that I will answer his interrogatories, whether he answers mine or not; and that after I have done so, I shall propound mine to him.

I have supposed myself, since the organization of the Republican party at Bloomington, in May, 1856, bound as a party man by the platforms of the party, then and since. If in any interrogatories which I shall answer I go beyond the scope of what is within these platforms, it will be perceived that no one is responsible but myself.

Having said thus much, I will take up the Judge's interrogatories as I find them printed in the Chicago Times, and answer them seriatim. In order that there may be no mistake about it, I have copied the interrogatories in writing, and also my answers to them. The first one of these interrogatories is in these words:

Question 1.--"I desire to know whether Lincoln to-day stands, as he did in 1854, in favor of the unconditional repeal of the Fugitive Slave law?" Answer:--I do not now, nor ever did, stand in favor of the unconditional repeal of the Fugitive Slave law.

Q. 2.--"I desire him to answer whether he stands pledged to-day, as he did in 1854, against the admission of any more slave States into the Union, even if the people want them?" Answer:--I do not now, nor ever did, stand pledged against the admission of any more slave States into the Union.

Q. 3.--"I want to know whether he stands pledged against the admission of a new State into the Union with such a constitution as the people of that State may see fit to make?" Answer:--I do not stand pledged against the admission of a new State into the Union, with such a constitution as the people of that State may see fit to make.

Q. 4.--"I want to know whether he stands to-day pledged to the abolition of slavery in the District of Columbia?" Answer:--I do not stand to-day pledged to the abolition of slavery in the District of Columbia.

Q. 5.--"I desire him to answer whether he stands pledged to the prohibition of the slave-trade between the different States?" Answer:--I do not stand pledged to the prohibition of the slave-trade between the different States.

Q. 6.--"I desire to know whether he stands pledged to prohibit slavery in all the Territories of the United States, north as well as south of the Missouri Compromise line?" Answer:--I am impliedly, if not expressly, pledged to a belief in the right and duty of Congress to prohibit slavery in all the United States 'Territories.

Q. 7.--"I desire him to answer whether he is opposed to the acquisition of any new territory unless slavery is first prohibited therein?" Answer:--I am not generally opposed to honest acquisition of territory; and, in any given case, I would or would not oppose such acquisition, accordingly as I might think such acquisition would or

would not aggravate the slavery question among ourselves.

Now, my friends, it will be perceived, upon an examination of these questions and answers, that so far I have only answered that I was not pledged to this, that, or the other. The Judge has not framed his interrogatories to ask me anything more than this, and I have answered in strict accordance with the interrogatories, and have answered truly, that I am not pledged at all upon any of the points to which I have answered. But I am not disposed to hang upon the exact form of his interrogatory. I am rather disposed to take up at least some of these questions, and state what I really think upon them.

As to the first one, in regard to the Fugitive Slave law, I have never hesitated to say, and I do not now hesitate to say, that I think, under the Constitution of the United States, the people of the Southern States are entitled to a Congressional Fugitive Slave law. Having said that, I have had nothing to say in regard to the existing Fugitive Slave law, further than that I think it should have been framed so as to be free from some of the objections that pertain to it, without lessening its efficiency. And inasmuch as we are not now in an agitation in regard to an alteration or modification of that law, I would not be the man to introduce it as a new subject of agitation upon the general question of slavery.

In regard to the other question, of whether I am pledged to the admission of any more slave States into the Union, I state to you very frankly that I would be exceedingly sorry ever to be put in a position of having to pass upon that question. I should be exceedingly glad to know that there would never be another slave State admitted into the Union; but I must add that if slavery shall be kept out of the Territories during the territorial existence of any one given Territory, and then the people shall, having a fair chance and a clear field, when they come to adopt the constitution, do such an extraordinary thing as to adopt a slave constitution, uninfluenced by the actual presence of the institution among them, I see no alternative, if we own the country, but to admit them into the Union.

The third interrogatory is answered by the answer to the second, it being, as I conceive, the same as the second.

The fourth one is in regard to the abolition of slavery in the District of Columbia. In relation to that, I have my mind very distinctly made up. I should be exceedingly glad to see slavery abolished in the District of Columbia. I believe that Congress possesses the constitutional power to abolish it. Yet as a member of Congress, I should not, with my present views, be in favor of endeavoring to abolish slavery in the District of Columbia, unless it would be upon these conditions: First, that the abolition should be gradual; second, that it should be on a vote of the majority of qualified voters in the District; and third, that compensation should be made to unwilling owners. With these three conditions, I confess I would be exceedingly glad to see Congress abolish slavery in the District of Columbia, and, in the language of Henry Clay, "sweep from our capital that foul blot upon our nation."

In regard to the fifth interrogatory, I must say here that, as to the question of the abolition of the slave-trade between the different States, I can truly answer, as I have,

that I am pledged to nothing about it. It is a subject to which I have not given that mature consideration that would make me feel authorized to state a position so as to hold myself entirely bound by it. In other words, that question has never been prominently enough before me to induce me to investigate whether we really have the constitutional power to do it. I could investigate it if I had sufficient time to bring myself to a conclusion upon that subject; but I have not done so, and I say so frankly to you here, and to Judge Douglas. I must say, however, that if I should be of opinion that Congress does possess the constitutional power to abolish the slave-trade among the different States, I should still not be in favor of the exercise of that power, unless upon some conservative principle as I conceive it, akin to what I have said in relation to the abolition of slavery in the District of Columbia.

My answer as to whether I desire that slavery should be prohibited in all the Territories of the United States is full and explicit within itself, and cannot be made clearer by any comments of mine. So I suppose in regard to the question whether I am opposed to the acquisition of any more territory unless slavery is first prohibited therein, my answer is such that I could add nothing by way of illustration, or making myself better understood, than the answer which I have placed in writing.

Now in all this the Judge has me, and he has me on the record. I suppose he had flattered himself that I was really entertaining one set of opinions for one place, and another set for another place; that I was afraid to say at one place what I uttered at another. What I am saying here I suppose I say to a vast audience as strongly tending to Abolitionism as any audience in the State of Illinois, and I believe I am saying that which, if it would be offensive to any persons and render them enemies to myself, would be offensive to persons in this audience.

I now proceed to propound to the Judge the interrogatories, so far as I have framed them. I will bring forward a new installment when I get them ready. I will bring them forward now only reaching to number four. The first one is:

Question 1.--If the people of Kansas shall, by means entirely unobjectionable in all other respects, adopt a State constitution, and ask admission into the Union under it, before they have the requisite number of inhabitants according to the English bill,--some ninety-three thousand,--will you vote to admit them?

Q. 2.--Can the people of a United States Territory, in any lawful way, against the wish of any citizen of the United States, exclude slavery from its limits prior to the formation of a State constitution?

Q. 3. If the Supreme Court of the United States shall decide that States cannot exclude slavery from their limits, are you in favor of acquiescing in, adopting, and following such decision as a rule of political action?

Q. 4. Are you in favor of acquiring additional territory, in disregard of how such acquisition may affect the nation on the slavery question?

As introductory to these interrogatories which Judge Douglas propounded to me at Ottawa, he read a set of resolutions which he said Judge Trumbull and myself had participated in adopting, in the first Republican State Convention, held at Springfield

in October, 1854. He insisted that I and Judge Trumbull, and perhaps the entire Republican party, were responsible for the doctrines contained in the set of resolutions which he read, and I understand that it was from that set of resolutions that he deduced the interrogatories which he propounded to me, using these resolutions as a sort of authority for propounding those questions to me. Now, I say here to-day that I do not answer his interrogatories because of their springing at all from that set of resolutions which he read. I answered them because Judge Douglas thought fit to ask them. I do not now, nor ever did, recognize any responsibility upon myself in that set of resolutions. When I replied to him on that occasion, I assured him that I never had anything to do with them. I repeat here to today that I never in any possible form had anything to do with that set of resolutions It turns out, I believe, that those resolutions were never passed in any convention held in Springfield.

It turns out that they were never passed at any convention or any public meeting that I had any part in. I believe it turns out, in addition to all this, that there was not, in the fall of 1854, any convention holding a session in Springfield, calling itself a Republican State Convention; yet it is true there was a convention, or assemblage of men calling themselves a convention, at Springfield, that did pass some resolutions. But so little did I really know of the proceedings of that convention, or what set of resolutions they had passed, though having a general knowledge that there had been such an assemblage of men there, that when Judge Douglas read the resolutions, I really did not know but they had been the resolutions passed then and there. I did not question that they were the resolutions adopted. For I could not bring myself to suppose that Judge Douglas could say what he did upon this subject without knowing that it was true. I contented myself, on that occasion, with denying, as I truly could, all connection with them, not denying or affirming whether they were passed at Springfield. Now, it turns out that he had got hold of some resolutions passed at some convention or public meeting in Kane County. I wish to say here, that I don't conceive that in any fair and just mind this discovery relieves me at all. I had just as much to do with the convention in Kane County as that at Springfield. I am as much responsible for the resolutions at Kane County as those at Springfield,--the amount of the responsibility being exactly nothing in either case; no more than there would be in regard to a set of resolutions passed in the moon.

I allude to this extraordinary matter in this canvass for some further purpose than anything yet advanced. Judge Douglas did not make his statement upon that occasion as matters that he believed to be true, but he stated them roundly as being true, in such form as to pledge his veracity for their truth. When the whole matter turns out as it does, and when we consider who Judge Douglas is, that he is a distinguished Senator of the United States; that he has served nearly twelve years as such; that his character is not at all limited as an ordinary Senator of the United States, but that his name has become of world-wide renown,--it is most extraordinary that he should so far forget all the suggestions of justice to an adversary, or of prudence to himself, as to venture upon the assertion of that which the slightest investigation would have shown him to be wholly false. I can only account for his having done so upon the supposition that that evil genius which has attended him through his life, giving to him an apparent astonishing prosperity, such as to lead very many good men to doubt

there being any advantage in virtue over vice,--I say I can only account for it on the supposition that that evil genius has as last made up its mind to forsake him.

And I may add that another extraordinary feature of the Judge's conduct in this canvass--made more extraordinary by this incident--is, that he is in the habit, in almost all the speeches he makes, of charging falsehood upon his adversaries, myself and others. I now ask whether he is able to find in anything that Judge Trumbull, for instance, has said, or in anything that I have said, a justification at all compared with what we have, in this instance, for that sort of vulgarity.

I have been in the habit of charging as a matter of belief on my part that, in the introduction of the Nebraska Bill into Congress, there was a conspiracy to make slavery perpetual and national. I have arranged from time to time the evidence which establishes and proves the truth of this charge. I recurred to this charge at Ottawa. I shall not now have time to dwell upon it at very great length; but inasmuch as Judge Douglas, in his reply of half an hour, made some points upon me in relation to it, I propose noticing a few of them.

The Judge insists that, in the first speech I made, in which I very distinctly made that charge, he thought for a good while I was in fun! that I was playful; that I was not sincere about it; and that he only grew angry and somewhat excited when he found that I insisted upon it as a matter of earnestness. He says he characterized it as a falsehood so far as I implicated his moral character in that transaction. Well, I did not know, till he presented that view, that I had implicated his moral character. He is very much in the habit, when he argues me up into a position I never thought of occupying, of very cosily saying he has no doubt Lincoln is "conscientious" in saying so. He should remember that I did not know but what he was ALTOGETHER "CONSCIENTIOUS" in that matter. I can conceive it possible for men to conspire to do a good thing, and I really find nothing in Judge Douglas's course of arguments that is contrary to or inconsistent with his belief of a conspiracy to nationalize and spread slavery as being a good and blessed thing; and so I hope he will understand that I do not at all question but that in all this matter he is entirely "conscientious."

But to draw your attention to one of the points I made in this case, beginning at the beginning: When the Nebraska Bill was introduced, or a short time afterward, by an amendment, I believe, it was provided that it must be considered "the true intent and meaning of this Act not to legislate slavery into any State or Territory, or to exclude it therefrom, but to leave the people thereof perfectly free to form and regulate their own domestic institutions in their own way, subject only to the Constitution of the United States." I have called his attention to the fact that when he and some others began arguing that they were giving an increased degree of liberty to the people in the Territories over and above what they formerly had on the question of slavery, a question was raised whether the law was enacted to give such unconditional liberty to the people; and to test the sincerity of this mode of argument, Mr. Chase, of Ohio, introduced an amendment, in which he made the law--if the amendment were adopted--expressly declare that the people of the Territory should have the power to exclude slavery if they saw fit. I have asked attention also to the fact that Judge Douglas and those who acted with him voted that amendment down, notwithstanding

it expressed exactly the thing they said was the true intent and meaning of the law. I have called attention to the fact that in subsequent times a decision of the Supreme Court has been made, in which it has been declared that a Territorial Legislature has no constitutional right to exclude slavery. And I have argued and said that for men who did, intend that the people of the Territory should have the right to exclude slavery absolutely and unconditionally, the voting down of Chase's amendment is wholly inexplicable. It is a puzzle, a riddle. But I have said, that with men who did look forward to such a decision, or who had it in contemplation that such a decision of the Supreme Court would or might be made, the voting down of that amendment would be perfectly rational and intelligible. It would keep Congress from coming in collision with the decision when it was made. Anybody can conceive that if there was an intention or expectation that such a decision was to follow, it would not be a very desirable party attitude to get into for the Supreme Court--all or nearly all its members belonging to the same party--to decide one way, when the party in Congress had decided the other way. Hence it would be very rational for men expecting such a decision to keep the niche in that law clear for it. After pointing this out, I tell Judge Douglas that it looks to me as though here was the reason why Chase's amendment was voted down. I tell him that, as he did it, and knows why he did it, if it was done for a reason different from this, he knows what that reason was and can tell us what it was. I tell him, also, it will be vastly more satisfactory to the country for him to give some other plausible, intelligible reason why it was voted down than to stand upon his dignity and call people liars. Well, on Saturday he did make his answer; and what do you think it was? He says if I had only taken upon myself to tell the whole truth about that amendment of Chase's, no explanation would have been necessary on his part or words to that effect. Now, I say here that I am quite unconscious of having suppressed anything material to the case, and I am very frank to admit if there is any sound reason other than that which appeared to me material, it is quite fair for him to present it. What reason does he propose? That when Chase came forward with his amendment expressly authorizing the people to exclude slavery from the limits of every Territory, General Cass proposed to Chase, if he (Chase) would add to his amendment that the people should have the power to introduce or exclude, they would let it go. This is substantially all of his reply. And because Chase would not do that, they voted his amendment down. Well, it turns out, I believe, upon examination, that General Cass took some part in the little running debate upon that amendment, and then ran away and did not vote on it at all. Is not that the fact? So confident, as I think, was General Cass that there was a snake somewhere about, he chose to run away from the whole thing. This is an inference I draw from the fact that, though he took part in the debate, his name does not appear in the ayes and noes. But does Judge Douglas's reply amount to a satisfactory answer?

[Cries of "Yes," "Yes," and "No," "No."]

There is some little difference of opinion here. But I ask attention to a few more views bearing on the question of whether it amounts to a satisfactory answer. The men who were determined that that amendment should not get into the bill, and spoil the place where the Dred Scott decision was to come in, sought an excuse to get rid of it somewhere. One of these ways--one of these excuses--was to ask Chase to add to

his proposed amendment a provision that the people might introduce slavery if they wanted to. They very well knew Chase would do no such thing, that Mr. Chase was one of the men differing from them on the broad principle of his insisting that freedom was better than slavery,--a man who would not consent to enact a law, penned with his own hand, by which he was made to recognize slavery on the one hand, and liberty on the other, as precisely equal; and when they insisted on his doing this, they very well knew they insisted on that which he would not for a moment think of doing, and that they were only bluffing him. I believe (I have not, since he made his answer, had a chance to examine the journals or Congressional Globe and therefore speak from memory)--I believe the state of the bill at that time, according to parliamentary rules, was such that no member could propose an additional amendment to Chase's amendment. I rather think this is the truth,--the Judge shakes his head. Very well. I would like to know, then, if they wanted Chase's amendment fixed over, why somebody else could not have offered to do it? If they wanted it amended, why did they not offer the amendment? Why did they not put it in themselves? But to put it on the other ground: suppose that there was such an amendment offered, and Chase's was an amendment to an amendment; until one is disposed of by parliamentary law, you cannot pile another on. Then all these gentlemen had to do was to vote Chase's on, and then, in the amended form in which the whole stood, add their own amendment to it, if they wanted to put it in that shape. This was all they were obliged to do, and the ayes and noes show that there were thirty-six who voted it down, against ten who voted in favor of it. The thirty-six held entire sway and control. They could in some form or other have put that bill in the exact shape they wanted. If there was a rule preventing their amending it at the time, they could pass that, and then, Chase's amendment being merged, put it in the shape they wanted. They did not choose to do so, but they went into a quibble with Chase to get him to add what they knew he would not add, and because he would not, they stand upon the flimsy pretext for voting down what they argued was the meaning and intent of their own bill. They left room thereby for this Dred Scott decision, which goes very far to make slavery national throughout the United States.

I pass one or two points I have, because my time will very soon expire; but I must be allowed to say that Judge Douglas recurs again, as he did upon one or two other occasions, to the enormity of Lincoln, an insignificant individual like Lincoln,--upon his ipse dixit charging a conspiracy upon a large number of members of Congress, the Supreme Court, and two Presidents, to nationalize slavery. I want to say that, in the first place, I have made no charge of this sort upon my ipse dixit. I have only arrayed the evidence tending to prove it, and presented it to the understanding of others, saying what I think it proves, but giving you the means of judging whether it proves it or not. This is precisely what I have done. I have not placed it upon my ipse dixit at all. On this occasion, I wish to recall his attention to a piece of evidence which I brought forward at Ottawa on Saturday, showing that he had made substantially the same charge against substantially the same persons, excluding his dear self from the category. I ask him to give some attention to the evidence which I brought forward that he himself had discovered a "fatal blow being struck" against the right of the people to exclude slavery from their limits, which fatal blow he assumed as in

evidence in an article in the Washington Union, published "by authority." I ask by whose authority? He discovers a similar or identical provision in the Lecompton Constitution. Made by whom? The framers of that Constitution. Advocated by whom? By all the members of the party in the nation, who advocated the introduction of Kansas into the Union under the Lecompton Constitution. I have asked his attention to the evidence that he arrayed to prove that such a fatal blow was being struck, and to the facts which he brought forward in support of that charge,--being identical with the one which he thinks so villainous in me. He pointed it, not at a newspaper editor merely, but at the President and his Cabinet and the members of Congress advocating the Lecompton Constitution and those framing that instrument. I must again be permitted to remind him that although my ipse dixit may not be as great as his, yet it somewhat reduces the force of his calling my attention to the enormity of my making a like charge against him.

Go on, Judge Douglas.

Mr. LINCOLN'S REJOINDER.

MY FRIENDS:--It will readily occur to you that I cannot, in half an hour, notice all the things that so able a man as Judge Douglas can say in an hour and a half; and I hope, therefore, if there be anything that he has said upon which you would like to hear something from me, but which I omit to comment upon, you will bear in mind that it would be expecting an impossibility for me to go over his whole ground. I can but take up some of the points that he has dwelt upon, and employ my half-hour specially on them.

The first thing I have to say to you is a word in regard to Judge Douglas's declaration about the "vulgarity and blackguardism" in the audience, that no such thing, as he says, was shown by any Democrat while I was speaking. Now, I only wish, by way of reply on this subject, to say that while I was speaking, I used no "vulgarity or blackguardism" toward any Democrat.

Now, my friends, I come to all this long portion of the Judge's speech,--perhaps half of it,--which he has devoted to the various resolutions and platforms that have been adopted in the different counties in the different Congressional districts, and in the Illinois legislature, which he supposes are at variance with the positions I have assumed before you to-day. It is true that many of these resolutions are at variance with the positions I have here assumed. All I have to ask is that we talk reasonably and rationally about it. I happen to know, the Judge's opinion to the contrary notwithstanding, that I have never tried to conceal my opinions, nor tried to deceive any one in reference to them. He may go and examine all the members who voted for me for United States Senator in 1855, after the election of 1854. They were pledged to certain things here at home, and were determined to have pledges from me; and if he will find any of these persons who will tell him anything inconsistent with what I say now, I will resign, or rather retire from the race, and give him no more trouble. The plain truth is this: At the introduction of the Nebraska policy, we believed there was a new era being introduced in the history of the Republic, which tended to the spread and perpetuation of slavery. But in our opposition to that measure we did not

agree with one another in everything. The people in the north end of the State were for stronger measures of opposition than we of the central and southern portions of the State, but we were all opposed to the Nebraska doctrine. We had that one feeling and that one sentiment in common. You at the north end met in your conventions and passed your resolutions. We in the middle of the State and farther south did not hold such conventions and pass the same resolutions, although we had in general a common view and a common sentiment. So that these meetings which the Judge has alluded to, and the resolutions he has read from, were local, and did not spread over the whole State. We at last met together in 1886, from all parts of the State, and we agreed upon a common platform. You, who held more extreme notions, either yielded those notions, or, if not wholly yielding them, agreed to yield them practically, for the sake of embodying the opposition to the measures which the opposite party were pushing forward at that time. We met you then, and if there was anything yielded, it was for practical purposes. We agreed then upon a platform for the party throughout the entire State of Illinois, and now we are all bound, as a party, to that platform.

And I say here to you, if any one expects of me--in case of my election--that I will do anything not signified by our Republican platform and my answers here to-day, I tell you very frankly that person will be deceived. I do not ask for the vote of any one who supposes that I have secret purposes or pledges that I dare not speak out. Cannot the Judge be satisfied? If he fears, in the unfortunate case of my election, that my going to Washington will enable me to advocate sentiments contrary to those which I expressed when you voted for and elected me, I assure him that his fears are wholly needless and groundless. Is the Judge really afraid of any such thing? I'll tell you what he is afraid of. He is afraid we'll all pull together. This is what alarms him more than anything else. For my part, I do hope that all of us, entertaining a common sentiment in opposition to what appears to us a design to nationalize and perpetuate slavery, will waive minor differences on questions which either belong to the dead past or the distant future, and all pull together in this struggle. What are your sentiments? If it be true that on the ground which I occupy--ground which I occupy as frankly and boldly as Judge Douglas does his,--my views, though partly coinciding with yours, are not as perfectly in accordance with your feelings as his are, I do say to you in all candor, go for him, and not for me. I hope to deal in all things fairly with Judge Douglas, and with the people of the State, in this contest. And if I should never be elected to any office, I trust I may go down with no stain of falsehood upon my reputation, notwithstanding the hard opinions Judge Douglas chooses to entertain of me.

The Judge has again addressed himself to the Abolition tendencies of a speech of mine made at Springfield in June last. I have so often tried to answer what he is always saying on that melancholy theme that I almost turn with disgust from the discussion,--from the repetition of an answer to it. I trust that nearly all of this intelligent audience have read that speech. If you have, I may venture to leave it to you to inspect it closely, and see whether it contains any of those "bugaboos" which frighten Judge Douglas.

The Judge complains that I did not fully answer his questions. If I have the sense to comprehend and answer those questions, I have done so fairly. If it can be pointed out to me how I can more fully and fairly answer him, I aver I have not the sense to see how it is to be done. He says I do not declare I would in any event vote for the admission of a slave State into the Union. If I have been fairly reported, he will see that I did give an explicit answer to his interrogatories; I did not merely say that I would dislike to be put to the test, but I said clearly, if I were put to the test, and a Territory from which slavery had been excluded should present herself with a State constitution sanctioning slavery,--a most extraordinary thing, and wholly unlikely to happen,--I did not see how I could avoid voting for her admission. But he refuses to understand that I said so, and he wants this audience to understand that I did not say so. Yet it will be so reported in the printed speech that he cannot help seeing it.

He says if I should vote for the admission of a slave State I would be voting for a dissolution of the Union, because I hold that the Union cannot permanently exist half slave and half free. I repeat that I do not believe this government can endure permanently half slave and half free; yet I do not admit, nor does it at all follow, that the admission of a single slave State will permanently fix the character and establish this as a universal slave nation. The Judge is very happy indeed at working up these quibbles. Before leaving the subject of answering questions, I aver as my confident belief, when you come to see our speeches in print, that you will find every question which he has asked me more fairly and boldly and fully answered than he has answered those which I put to him. Is not that so? The two speeches may be placed side by side, and I will venture to leave it to impartial judges whether his questions have not been more directly and circumstantially answered than mine.

Judge Douglas says he made a charge upon the editor of the Washington Union, alone, of entertaining a purpose to rob the States of their power to exclude slavery from their limits. I undertake to say, and I make the direct issue, that he did not make his charge against the editor of the Union alone. I will undertake to prove by the record here that he made that charge against more and higher dignitaries than the editor of the Washington Union. I am quite aware that he was shirking and dodging around the form in which he put it, but I can make it manifest that he leveled his "fatal blow" against more persons than this Washington editor. Will he dodge it now by alleging that I am trying to defend Mr. Buchanan against the charge? Not at all. Am I not making the same charge myself? I am trying to show that you, Judge Douglas, are a witness on my side. I am not defending Buchanan, and I will tell Judge Douglas that in my opinion, when he made that charge, he had an eye farther north than he has to-day. He was then fighting against people who called him a Black Republican and an Abolitionist. It is mixed all through his speech, and it is tolerably manifest that his eye was a great deal farther north than it is to-day. The Judge says that though he made this charge, Toombs got up and declared there was not a man in the United States, except the editor of the Union, who was in favor of the doctrines put forth in that article. And thereupon I understand that the Judge withdrew the charge. Although he had taken extracts from the newspaper, and then from the Lecompton Constitution, to show the existence of a conspiracy to bring about a "fatal blow," by which the States were to be deprived of the right of excluding slavery, it all

went to pot as soon as Toombs got up and told him it was not true. It reminds me of the story that John Phoenix, the California railroad surveyor, tells. He says they started out from the Plaza to the Mission of Dolores. They had two ways of determining distances. One was by a chain and pins taken over the ground. The other was by a "go-it-ometer,"--an invention of his own,--a three-legged instrument, with which he computed a series of triangles between the points. At night he turned to the chain-man to ascertain what distance they had come, and found that by some mistake he had merely dragged the chain over the ground, without keeping any record. By the "go-it-ometer," he found he had made ten miles. Being skeptical about this, he asked a drayman who was passing how far it was to the Plaza. The drayman replied it was just half a mile; and the surveyor put it down in his book,--just as Judge Douglas says, after he had made his calculations and computations, he took Toombs's statement. I have no doubt that after Judge Douglas had made his charge, he was as easily satisfied about its truth as the surveyor was of the drayman's statement of the distance to the Plaza. Yet it is a fact that the man who put forth all that matter which Douglas deemed a "fatal blow" at State sovereignty was elected by the Democrats as public printer.

Now, gentlemen, you may take Judge Douglas's speech of March 22, 1858, beginning about the middle of page 21, and reading to the bottom of page 24, and you will find the evidence on which I say that he did not make his charge against the editor of the Union alone. I cannot stop to read it, but I will give it to the reporters. Judge Douglas said:

"Mr. President, you here find several distinct propositions advanced boldly by the Washington Union editorially, and apparently authoritatively, and every man who questions any of them is denounced as an Abolitionist, a Free-soiler, a fanatic. The propositions are, first, that the primary object of all government at its original institution is the protection of persons and property; second, that the Constitution of the United States declares that the citizens of each State shall be entitled to all the privileges and immunities of citizens in the several States; and that, therefore, thirdly, all State laws, whether organic or otherwise, which prohibit the citizens of one State from settling in another with their slave property, and especially declaring it forfeited, are direct violations of the original intention of the Government and Constitution of the United States; and, fourth, that the emancipation of the slaves of the Northern States was a gross outrage on the rights of property, in as much as it was involuntarily done on the part of the owner.

"Remember that this article was published in the Union on the 17th of November, and on the 18th appeared the first article giving the adhesion of the Union to the Lecompton Constitution. It was in these words:

"'KANSAS AND HER CONSTITUTION.--The vexed question is settled. The problem is solved. The dead point of danger is passed. All serious trouble to Kansas affairs is over and gone...."

"And a column, nearly, of the same sort. Then, when you come to look into the Lecompton Constitution, you find the same doctrine incorporated in it which was put

forth editorially in the Union. What is it?

"'ARTICLE 7, Section i. The right of property is before and higher than any constitutional sanction; and the right of the owner of a slave to such slave and its increase is the same and as invariable as the right of the owner of any property whatever.'

"Then in the schedule is a provision that the Constitution may be amended after 1864 by a two-thirds vote.

"'But no alteration shall be made to affect the right of property in the ownership of slaves.'

"It will be seen by these clauses in the Lecompton Constitution that they are identical in spirit with this authoritative article in the Washington Union of the day previous to its indorsement of this Constitution.

"When I saw that article in the Union of the 17th of November, followed by the glorification of the Lecompton Constitution on the 18th of November, and this clause in the Constitution asserting the doctrine that a State has no right to prohibit slavery within its limits, I saw that there was a fatal blow being struck at the sovereignty of the States of this Union."

Here he says, "Mr. President, you here find several distinct propositions advanced boldly, and apparently authoritatively." By whose authority, Judge Douglas? Again, he says in another place, "It will be seen by these clauses in the Lecompton Constitution that they are identical in spirit with this authoritative article." By whose authority,--who do you mean to say authorized the publication of these articles? He knows that the Washington Union is considered the organ of the Administration. I demand of Judge Douglas by whose authority he meant to say those articles were published, if not by the authority of the President of the United States and his Cabinet? I defy him to show whom he referred to, if not to these high functionaries in the Federal Government. More than this, he says the articles in that paper and the provisions of the Lecompton Constitution are "identical," and, being identical, he argues that the authors are co-operating and conspiring together. He does not use the word "conspiring," but what other construction can you put upon it? He winds up:

"When I saw that article in the Union of the 17th of November, followed by the glorification of the Lecompton Constitution on the 18th of November, and this clause in the Constitution asserting the doctrine that a State has no right to prohibit slavery within its limits, I saw that there was a fatal blow being struck at the sovereignty of the States of this Union."

I ask him if all this fuss was made over the editor of this newspaper. It would be a terribly "fatal blow" indeed which a single man could strike, when no President, no Cabinet officer, no member of Congress, was giving strength and efficiency to the movement. Out of respect to Judge Douglas's good sense I must believe he did n't manufacture his idea of the "fatal" character of that blow out of such a miserable scapegrace as he represents that editor to be. But the Judge's eye is farther south now. Then, it was very peculiarly and decidedly north. His hope rested on the idea of

visiting the great "Black Republican" party, and making it the tail of his new kite. He knows he was then expecting from day to day to turn Republican, and place himself at the head of our organization. He has found that these despised "Black Republicans" estimate him by a standard which he has taught them none too well. Hence he is crawling back into his old camp, and you will find him eventually installed in full fellowship among those whom he was then battling, and with whom he now pretends to be at such fearful variance.

THIRD JOINT DEBATE, AT JONESBORO,

SEPTEMBER 15, 1858

Mr. LINCOLN'S REPLY.

LADIES AND GENTLEMEN:--There is very much in the principles that Judge Douglas has here enunciated that I most cordially approve, and over which I shall have no controversy with him. In so far as he has insisted that all the States have the right to do exactly as they please about all their domestic relations, including that of slavery, I agree entirely with him. He places me wrong in spite of all I can tell him, though I repeat it again and again, insisting that I have no difference with him upon this subject. I have made a great many speeches, some of which have been printed, and it will be utterly impossible for him to find anything that I have ever put in print contrary to what I now say upon this subject. I hold myself under constitutional obligations to allow the people in all the States, without interference, direct or indirect, to do exactly as they please; and I deny that I have any inclination to interfere with them, even if there were no such constitutional obligation. I can only say again that I am placed improperly--altogether improperly, in spite of all I can say--when it is insisted that I entertain any other view or purposes in regard to that matter.

While I am upon this subject, I will make some answers briefly to certain propositions that Judge Douglas has put. He says, "Why can't this Union endure permanently half slave and half free?" I have said that I supposed it could not, and I will try, before this new audience, to give briefly some of the reasons for entertaining that opinion. Another form of his question is, "Why can't we let it stand as our fathers placed it?" That is the exact difficulty between us. I say that Judge Douglas and his friends have changed it from the position in which our fathers originally placed it. I say, in the way our father's originally left the slavery question, the institution was in the course of ultimate extinction, and the public mind rested in the belief that it was in the course of ultimate extinction. I say when this government was first established it was the policy of its founders to prohibit the spread of slavery into the new Territories of the United States, where it had not existed. But Judge Douglas and his friends have broken up that policy, and placed it upon a new basis, by which it is to become national and perpetual. All I have asked or desired anywhere is that it should be placed back again upon the basis that the fathers of our government originally placed it upon. I have no doubt that it would become extinct, for all time to come, if

we but readopted the policy of the fathers, by restricting it to the limits it has already covered, restricting it from the new Territories.

I do not wish to dwell at great length on this branch of the subject at this time, but allow me to repeat one thing that I have stated before. Brooks--the man who assaulted Senator Sumner on the floor of the Senate, and who was complimented with dinners, and silver pitchers, and gold-headed canes, and a good many other things for that feat--in one of his speeches declared that when this government was originally established, nobody expected that the institution of slavery would last until this day. That was but the opinion of one man, but it was such an opinion as we can never get from Judge Douglas or anybody in favor of slavery, in the North, at all. You can sometimes get it from a Southern man. He said at the same time that the framers of our government did not have the knowledge that experience has taught us; that experience and the invention of the cotton-gin have taught us that the perpetuation of slavery is a necessity. He insisted, therefore, upon its being changed from the basis upon which the fathers of the government left it to the basis of its perpetuation and nationalization.

I insist that this is the difference between Judge Douglas and myself,--that Judge Douglas is helping that change along. I insist upon this government being placed where our fathers originally placed it.

I remember Judge Douglas once said that he saw the evidences on the statute books of Congress of a policy in the origin of government to divide slavery and freedom by a geographical line; that he saw an indisposition to maintain that policy, and therefore he set about studying up a way to settle the institution on the right basis,--the basis which he thought it ought to have been placed upon at first; and in that speech he confesses that he seeks to place it, not upon the basis that the fathers placed it upon, but upon one gotten up on "original principles." When he asks me why we cannot get along with it in the attitude where our fathers placed it, he had better clear up the evidences that he has himself changed it from that basis, that he has himself been chiefly instrumental in changing the policy of the fathers. Any one who will read his speech of the 22d of last March will see that he there makes an open confession, showing that he set about fixing the institution upon an altogether different set of principles. I think I have fully answered him when he asks me why we cannot let it alone upon the basis where our fathers left it, by showing that he has himself changed the whole policy of the government in that regard.

Now, fellow-citizens, in regard to this matter about a contract that was made between Judge Trumbull and myself, and all that long portion of Judge Douglas's speech on this subject,--I wish simply to say what I have said to him before, that he cannot know whether it is true or not, and I do know that there is not a word of truth in it. And I have told him so before. I don't want any harsh language indulged in, but I do not know how to deal with this persistent insisting on a story that I know to be utterly without truth. It used to be a fashion amongst men that when a charge was made, some sort of proof was brought forward to establish it, and if no proof was found to exist, the charge was dropped. I don't know how to meet this kind of an argument. I don't want to have a fight with Judge Douglas, and I have no way of

making an argument up into the consistency of a corn-cob and stopping his mouth with it. All I can do is--good-humoredly--to say that, from the beginning to the end of all that story about a bargain between Judge Trumbull and myself, there is not a word of truth in it. I can only ask him to show some sort of evidence of the truth of his story. He brings forward here and reads from what he contends is a speech by James H. Matheny, charging such a bargain between Trumbull and myself. My own opinion is that Matheny did do some such immoral thing as to tell a story that he knew nothing about. I believe he did. I contradicted it instantly, and it has been contradicted by Judge Trumbull, while nobody has produced any proof, because there is none. Now, whether the speech which the Judge brings forward here is really the one Matheny made, I do not know, and I hope the Judge will pardon me for doubting the genuineness of this document, since his production of those Springfield resolutions at Ottawa. I do not wish to dwell at any great length upon this matter. I can say nothing when a long story like this is told, except it is not true, and demand that he who insists upon it shall produce some proof. That is all any man can do, and I leave it in that way, for I know of no other way of dealing with it.

[In an argument on the lines of: "Yes, you did.--No, I did not." It bears on the former to prove his point, not on the negative to "prove" that he did not--even if he easily can do so.]

The Judge has gone over a long account of the old Whig and Democratic parties, and it connects itself with this charge against Trumbull and myself. He says that they agreed upon a compromise in regard to the slavery question in 1850; that in a National Democratic Convention resolutions were passed to abide by that compromise as a finality upon the slavery question. He also says that the Whig party in National Convention agreed to abide by and regard as a finality the Compromise of 1850. I understand the Judge to be altogether right about that; I understand that part of the history of the country as stated by him to be correct I recollect that I, as a member of that party, acquiesced in that compromise. I recollect in the Presidential election which followed, when we had General Scott up for the presidency, Judge Douglas was around berating us Whigs as Abolitionists, precisely as he does to-day,--not a bit of difference. I have often heard him. We could do nothing when the old Whig party was alive that was not Abolitionism, but it has got an extremely good name since it has passed away.

[It almost a natural law that, when dead--no matter how bad we were--we are automatically beatified.]

When that Compromise was made it did not repeal the old Missouri Compromise. It left a region of United States territory half as large as the present territory of the United States, north of the line of 36 degrees 30 minutes, in which slavery was prohibited by Act of Congress. This Compromise did not repeal that one. It did not affect or propose to repeal it. But at last it became Judge Douglas's duty, as he thought (and I find no fault with him), as Chairman of the Committee on Territories, to bring in a bill for the organization of a territorial government,--first of one, then of two Territories north of that line. When he did so, it ended in his inserting a provision substantially repealing the Missouri Compromise. That was because the Compromise

of 1850 had not repealed it. And now I ask why he could not have let that Compromise alone? We were quiet from the agitation of the slavery question. We were making no fuss about it. All had acquiesced in the Compromise measures of 1850. We never had been seriously disturbed by any Abolition agitation before that period. When he came to form governments for the Territories north of the line of 36 degrees 30 minutes, why could he not have let that matter stand as it was standing? Was it necessary to the organization of a Territory? Not at all. Iowa lay north of the line, and had been organized as a Territory and come into the Union as a State without disturbing that Compromise. There was no sort of necessity for destroying it to organize these Territories. But, gentlemen, it would take up all my time to meet all the little quibbling arguments of Judge Douglas to show that the Missouri Compromise was repealed by the Compromise of 1850. My own opinion is, that a careful investigation of all the arguments to sustain the position that that Compromise was virtually repealed by the Compromise of 1850 would show that they are the merest fallacies. I have the report that Judge Douglas first brought into Congress at the time of the introduction of the Nebraska Bill, which in its original form did not repeal the Missouri Compromise, and he there expressly stated that he had forborne to do so because it had not been done by the Compromise of 1850. I close this part of the discussion on my part by asking him the question again, "Why, when we had peace under the Missouri Compromise, could you not have let it alone?"

In complaining of what I said in my speech at Springfield, in which he says I accepted my nomination for the senatorship (where, by the way, he is at fault, for if he will examine it, he will find no acceptance in it), he again quotes that portion in which I said that "a house divided against itself cannot stand." Let me say a word in regard to that matter.

He tries to persuade us that there must be a variety in the different institutions of the States of the Union; that that variety necessarily proceeds from the variety of soil, climate, of the face of the country, and the difference in the natural features of the States. I agree to all that. Have these very matters ever produced any difficulty amongst us? Not at all. Have we ever had any quarrel over the fact that they have laws in Louisiana designed to regulate the commerce that springs from the production of sugar? Or because we have a different class relative to the production of flour in this State? Have they produced any differences? Not at all. They are the very cements of this Union. They don't make the house a house divided against itself. They are the props that hold up the house and sustain the Union.

But has it been so with this element of slavery? Have we not always had quarrels and difficulties over it? And when will we cease to have quarrels over it? Like causes produce like effects. It is worth while to observe that we have generally had comparative peace upon the slavery question, and that there has been no cause for alarm until it was excited by the effort to spread it into new territory. Whenever it has been limited to its present bounds, and there has been no effort to spread it, there has been peace. All the trouble and convulsion has proceeded from efforts to spread it over more territory. It was thus at the date of the Missouri Compromise. It was so again with the annexation of Texas; so with the territory acquired by the Mexican

war; and it is so now. Whenever there has been an effort to spread it, there has been agitation and resistance. Now, I appeal to this audience (very few of whom are my political friends), as national men, whether we have reason to expect that the agitation in regard to this subject will cease while the causes that tend to reproduce agitation are actively at work? Will not the same cause that produced agitation in 1820, when the Missouri Compromise was formed, that which produced the agitation upon the annexation of Texas, and at other times, work out the same results always? Do you think that the nature of man will be changed, that the same causes that produced agitation at one time will not have the same effect at another?

This has been the result so far as my observation of the slavery question and my reading in history extends. What right have we then to hope that the trouble will cease,--that the agitation will come to an end,--until it shall either be placed back where it originally stood, and where the fathers originally placed it, or, on the other hand, until it shall entirely master all opposition? This is the view I entertain, and this is the reason why I entertained it, as Judge Douglas has read from my Springfield speech.

Now, my friends, there is one other thing that I feel myself under some sort of obligation to mention. Judge Douglas has here to-day--in a very rambling way, I was about saying--spoken of the platforms for which he seeks to hold me responsible. He says, "Why can't you come out and make an open avowal of principles in all places alike?" and he reads from an advertisement that he says was used to notify the people of a speech to be made by Judge Trumbull at Waterloo. In commenting on it he desires to know whether we cannot speak frankly and manfully, as he and his friends do. How, I ask, do his friends speak out their own sentiments? A Convention of his party in this State met on the 21st of April at Springfield, and passed a set of resolutions which they proclaim to the country as their platform. This does constitute their platform, and it is because Judge Douglas claims it is his platform--that these are his principles and purposes--that he has a right to declare he speaks his sentiments "frankly and manfully." On the 9th of June Colonel John Dougherty, Governor Reynolds, and others, calling themselves National Democrats, met in Springfield and adopted a set of resolutions which are as easily understood, as plain and as definite in stating to the country and to the world what they believed in and would stand upon, as Judge Douglas's platform Now, what is the reason that Judge Douglas is not willing that Colonel Dougherty and Governor Reynolds should stand upon their own written and printed platform as well as he upon his? Why must he look farther than their platform when he claims himself to stand by his platform?

Again, in reference to our platform: On the 16th of June the Republicans had their Convention and published their platform, which is as clear and distinct as Judge Douglas's. In it they spoke their principles as plainly and as definitely to the world. What is the reason that Judge Douglas is not willing I should stand upon that platform? Why must he go around hunting for some one who is supporting me or has supported me at some time in his life, and who has said something at some time contrary to that platform? Does the Judge regard that rule as a good one? If it turn out that the rule is a good one for me--that I am responsible for any and every opinion

that any man has expressed who is my friend,--then it is a good rule for him. I ask, is it not as good a rule for him as it is for me? In my opinion, it is not a good rule for either of us. Do you think differently, Judge?

[Mr. DOUGLAS: I do not.]

Judge Douglas says he does not think differently. I am glad of it. Then can he tell me why he is looking up resolutions of five or six years ago, and insisting that they were my platform, notwithstanding my protest that they are not, and never were my platform, and my pointing out the platform of the State Convention which he delights to say nominated me for the Senate? I cannot see what he means by parading these resolutions, if it is not to hold me responsible for them in some way. If he says to me here that he does not hold the rule to be good, one way or the other, I do not comprehend how he could answer me more fully if he answered me at greater length. I will therefore put in as my answer to the resolutions that he has hunted up against me, what I, as a lawyer, would call a good plea to a bad declaration. I understand that it is an axiom of law that a poor plea may be a good plea to a bad declaration. I think that the opinions the Judge brings from those who support me, yet differ from me, is a bad declaration against me; but if I can bring the same things against him, I am putting in a good plea to that kind of declaration, and now I propose to try it.

At Freeport, Judge Douglas occupied a large part of his time in producing resolutions and documents of various sorts, as I understood, to make me somehow responsible for them; and I propose now doing a little of the same sort of thing for him. In 1850 a very clever gentleman by the name of Thompson Campbell, a personal friend of Judge Douglas and myself, a political friend of Judge Douglas and opponent of mine, was a candidate for Congress in the Galena District. He was interrogated as to his views on this same slavery question. I have here before me the interrogatories, and Campbell's answers to them--I will read them:

INTERROGATORIES:

"1st. Will you, if elected, vote for and cordially support a bill prohibiting slavery in the Territories of the United States?

"2d. Will you vote for and support a bill abolishing slavery in the District of Columbia?

"3d. Will you oppose the admission of any Slave States which may be formed out of Texas or the Territories?

"4th. Will you vote for and advocate the repeal of the Fugitive Slave law passed at the recent session of Congress?

"5th. Will you advocate and vote for the election of a Speaker of the House of Representatives who shall be willing to organize the committees of that House so as to give the Free States their just influence in the business of legislation?

"6th. What are your views, not only as to the constitutional right of Congress to prohibit the slave-trade between the States, but also as to the expediency of

exercising that right immediately?"

CAMPBELL'S REPLY.

"To the first and second interrogatories, I answer unequivocally in the affirmative.

"To the third interrogatory I reply, that I am opposed to the admission of any more Slave States into the Union, that may be formed out of Texas or any other Territory.

"To the fourth and fifth interrogatories I unhesitatingly answer in the affirmative.

"To the sixth interrogatory I reply, that so long as the Slave States continue to treat slaves as articles of commerce, the Constitution confers power on Congress to pass laws regulating that peculiar COMMERCE, and that the protection of Human Rights imperatively demands the interposition of every constitutional means to prevent this most inhuman and iniquitous traffic.

"T. CAMPBELL."

I want to say here that Thompson Campbell was elected to Congress on that platform, as the Democratic candidate in the Galena District, against Martin P. Sweet.

[Judge DOUGLAS: Give me the date of the letter.]

The time Campbell ran was in 1850. I have not the exact date here. It was some time in 1850 that these interrogatories were put and the answer given. Campbell was elected to Congress, and served out his term. I think a second election came up before he served out his term, and he was not re-elected. Whether defeated or not nominated, I do not know. [Mr. Campbell was nominated for re-election by the Democratic party, by acclamation.] At the end of his term his very good friend Judge Douglas got him a high office from President Pierce, and sent him off to California. Is not that the fact? Just at the end of his term in Congress it appears that our mutual friend Judge Douglas got our mutual friend Campbell a good office, and sent him to California upon it. And not only so, but on the 27th of last month, when Judge Douglas and myself spoke at Freeport in joint discussion, there was his same friend Campbell, come all the way from California, to help the Judge beat me; and there was poor Martin P. Sweet standing on the platform, trying to help poor me to be elected. That is true of one of Judge Douglas's friends.

So again, in that same race of 1850, there was a Congressional Convention assembled at Joliet, and it nominated R. S. Molony for Congress, and unanimously adopted the following resolution:

"Resolved, That we are uncompromisingly opposed to the extension of slavery; and while we would not make such opposition a ground of interference with the interests of the States where it exists, yet we moderately but firmly insist that it is the duty of Congress to oppose its extension into Territory now free, by all means compatible with the obligations of the Constitution, and with good faith to our sister States; that these principles were recognized by the Ordinance of 1787, which received the sanction of Thomas Jefferson, who is acknowledged by all to be the great oracle and expounder of our faith."

Subsequently the same interrogatories were propounded to Dr. Molony which had been addressed to Campbell as above, with the exception of the 6th, respecting the interstate slave trade, to which Dr. Molony, the Democratic nominee for Congress, replied as follows:

"I received the written interrogatories this day, and, as you will see by the La Salle Democrat and Ottawa Free Trader, I took at Peru on the 5th, and at Ottawa on the 7th, the affirmative side of interrogatories 1st and 2d; and in relation to the admission of any more Slave States from Free Territory, my position taken at these meetings, as correctly reported in said papers, was emphatically and distinctly opposed to it. In relation to the admission of any more Slave States from Texas, whether I shall go against it or not will depend upon the opinion that I may hereafter form of the true meaning and nature of the resolutions of annexation. If, by said resolutions, the honor and good faith of the nation is pledged to admit more Slave States from Texas when she (Texas) may apply for the admission of such State, then I should, if in Congress, vote for their admission. But if not so PLEDGED and bound by sacred contract, then a bill for the admission of more Slave States from Texas would never receive my vote.

"To your fourth interrogatory I answer most decidedly in the affirmative, and for reasons set forth in my reported remarks at Ottawa last Monday.

"To your fifth interrogatory I also reply in the affirmative most cordially, and that I will use my utmost exertions to secure the nomination and election of a man who will accomplish the objects of said interrogatories. I most cordially approve of the resolutions adopted at the Union meeting held at Princeton on the 27th September ult.

"Yours, etc., R. S. MOLONY."

All I have to say in regard to Dr. Molony is that he was the regularly nominated Democratic candidate for Congress in his district; was elected at that time; at the end of his term was appointed to a land-office at Danville. (I never heard anything of Judge Douglas's instrumentality in this.) He held this office a considerable time, and when we were at Freeport the other day there were handbills scattered about notifying the public that after our debate was over R. S. Molony would make a Democratic speech in favor of Judge Douglas. That is all I know of my own personal knowledge. It is added here to this resolution, and truly I believe, that among those who participated in the Joliet Convention, and who supported its nominee, with his platform as laid down in the resolution of the Convention and in his reply as above given, we call at random the following names, all of which are recognized at this day as leading Democrats:

"Cook County,--E. B. Williams, Charles McDonell, Arno Voss, Thomas Hoyne, Isaac Cook."

I reckon we ought to except Cook.

"F. C. Sherman. "Will,--Joel A. Matteson, S. W. Bowen. "Kane,--B. F. Hall, G. W. Renwick, A. M. Herrington, Elijah Wilcox. "McHenry,--W. M. Jackson, Enos W. Smith,

Neil Donnelly. La Salle,--John Hise, William Reddick."

William Reddick! another one of Judge Douglas's friends that stood on the stand with him at Ottawa, at the time the Judge says my knees trembled so that I had to be carried away. The names are all here:

"Du Page,--Nathan Allen. "De Kalb,--Z. B. Mayo."

Here is another set of resolutions which I think are apposite to the matter in hand.

On the 28th of February of the same year a Democratic District Convention was held at Naperville to nominate a candidate for Circuit Judge. Among the delegates were Bowen and Kelly of Will; Captain Naper, H. H. Cody, Nathan Allen, of Du Page; W. M. Jackson, J. M. Strode, P. W. Platt, and Enos W. Smith of McHenry; J. Horssnan and others of Winnebago. Colonel Strode presided over the Convention. The following resolutions were unanimously adopted,--the first on motion of P. W. Platt, the second on motion of William M. Jackson:

"Resolved, That this Convention is in favor of the Wilmot Proviso, both in Principle and Practice, and that we know of no good reason why any person should oppose the largest latitude in Free Soil, Free Territory and Free speech.

"Resolved, That in the opinion of this Convention, the time has arrived when all men should be free, whites as well as others."

[Judge DOUGLAS: What is the date of those resolutions?]

I understand it was in 1850, but I do not know it. I do not state a thing and say I know it, when I do not. But I have the highest belief that this is so. I know of no way to arrive at the conclusion that there is an error in it. I mean to put a case no stronger than the truth will allow. But what I was going to comment upon is an extract from a newspaper in De Kalb County; and it strikes me as being rather singular, I confess, under the circumstances. There is a Judge Mayo in that county, who is a candidate for the Legislature, for the purpose, if he secures his election, of helping to re-elect Judge Douglas. He is the editor of a newspaper [De Kalb County Sentinel], and in that paper I find the extract I am going to read. It is part of an editorial article in which he was electioneering as fiercely as he could for Judge Douglas and against me. It was a curious thing, I think, to be in such a paper. I will agree to that, and the Judge may make the most of it:

"Our education has been such that we have been rather in favor of the equality of the blacks; that is, that they should enjoy all the privileges of the whites where they reside. We are aware that this is not a very popular doctrine. We have had many a confab with some who are now strong 'Republicans' we taking the broad ground of equality, and they the opposite ground.

"We were brought up in a State where blacks were voters, and we do not know of any inconvenience resulting from it, though perhaps it would not work as well where the blacks are more numerous. We have no doubt of the right of the whites to guard against such an evil, if it is one. Our opinion is that it would be best for all concerned to have the colored population in a State by themselves [in this I agree with him]; but

if within the jurisdiction of the United States, we say by all means they should have the right to have their Senators and Representatives in Congress, and to vote for President. With us 'worth makes the man, and want of it the fellow.' We have seen many a 'nigger' that we thought more of than some white men."

That is one of Judge Douglas's friends. Now, I do not want to leave myself in an attitude where I can be misrepresented, so I will say I do not think the Judge is responsible for this article; but he is quite as responsible for it as I would be if one of my friends had said it. I think that is fair enough.

I have here also a set of resolutions passed by a Democratic State Convention in Judge Douglas's own good State of Vermont, that I think ought to be good for him too:

"Resolved, That liberty is a right inherent and inalienable in man, and that herein all men are equal.

"Resolved, That we claim no authority in the Federal Government to abolish slavery in the several States, but we do claim for it Constitutional power perpetually to prohibit the introduction of slavery into territory now free, and abolish it wherever, under the jurisdiction of Congress, it exists.

"Resolved, That this power ought immediately to be exercised in prohibiting the introduction and existence of slavery in New Mexico and California, in abolishing slavery and the slave-trade in the District of Columbia, on the high seas, and wherever else, under the Constitution, it can be reached.

"Resolved, That no more Slave States should be admitted into the Federal Union.

"Resolved, That the Government ought to return to its ancient policy, not to extend, nationalize, or encourage, but to limit, localize, and discourage slavery."

At Freeport I answered several interrogatories that had been propounded to me by Judge Douglas at the Ottawa meeting. The Judge has not yet seen fit to find any fault with the position that I took in regard to those seven interrogatories, which were certainly broad enough, in all conscience, to cover the entire ground. In my answers, which have been printed, and all have had the opportunity of seeing, I take the ground that those who elect me must expect that I will do nothing which will not be in accordance with those answers. I have some right to assert that Judge Douglas has no fault to find with them. But he chooses to still try to thrust me upon different ground, without paying any attention to my answers, the obtaining of which from me cost him so much trouble and concern. At the same time I propounded four interrogatories to him, claiming it as a right that he should answer as many interrogatories for me as I did for him, and I would reserve myself for a future instalment when I got them ready. The Judge, in answering me upon that occasion, put in what I suppose he intends as answers to all four of my interrogatories. The first one of these interrogatories I have before me, and it is in these words:

"Question 1.--If the people of Kansas shall, by means entirely unobjectionable in all other respects, adopt a State constitution, and ask admission into the Union under it, before they have the requisite number of inhabitants according to the English bill,"--some ninety-three thousand,--"will you vote to admit them?"

As I read the Judge's answer in the newspaper, and as I remember it as pronounced at the time, he does not give any answer which is equivalent to yes or no,--I will or I won't. He answers at very considerable length, rather quarreling with me for asking the question, and insisting that Judge Trumbull had done something that I ought to say something about, and finally getting out such statements as induce me to infer that he means to be understood he will, in that supposed case, vote for the admission of Kansas. I only bring this forward now for the purpose of saying that if he chooses to put a different construction upon his answer, he may do it. But if he does not, I shall from this time forward assume that he will vote for the admission of Kansas in disregard of the English bill. He has the right to remove any misunderstanding I may have. I only mention it now, that I may hereafter assume this to be the true construction of his answer, if he does not now choose to correct me.

The second interrogatory that I propounded to him was this:

"Question 2.--Can the people of a United States Territory, in any lawful way, against the wish of any citizen of the United States, exclude slavery from its limits prior to the formation of a State Constitution?"

To this Judge Douglas answered that they can lawfully exclude slavery from the Territory prior to the formation of a constitution. He goes on to tell us how it can be done. As I understand him, he holds that it can be done by the Territorial Legislature refusing to make any enactments for the protection of slavery in the Territory, and especially by adopting unfriendly legislation to it. For the sake of clearness, I state it again: that they can exclude slavery from the Territory, 1st, by withholding what he assumes to be an indispensable assistance to it in the way of legislation; and, 2d, by unfriendly legislation. If I rightly understand him, I wish to ask your attention for a while to his position.

In the first place, the Supreme Court of the United States has decided that any Congressional prohibition of slavery in the Territories is unconstitutional; that they have reached this proposition as a conclusion from their former proposition, that the Constitution of the United States expressly recognizes property in slaves, and from that other Constitutional provision, that no person shall be deprived of property without due process of law. Hence they reach the conclusion that as the Constitution of the United States expressly recognizes property in slaves, and prohibits any person from being deprived of property without due process of law, to pass an Act of Congress by which a man who owned a slave on one side of a line would be deprived of him if he took him on the other side, is depriving him of that property without due process of law. That I understand to be the decision of the Supreme Court. I understand also that Judge Douglas adheres most firmly to that decision; and the difficulty is, how is it possible for any power to exclude slavery from the Territory, unless in violation of that decision? That is the difficulty.

In the Senate of the United States, in 1850, Judge Trumbull, in a speech substantially, if not directly, put the same interrogatory to Judge Douglas, as to whether the people of a Territory had the lawful power to exclude slavery prior to the formation of a constitution. Judge Douglas then answered at considerable length, and

his answer will be found in the Congressional Globe, under date of June 9th, 1856. The Judge said that whether the people could exclude slavery prior to the formation of a constitution or not was a question to be decided by the Supreme Court. He put that proposition, as will be seen by the Congressional Globe, in a variety of forms, all running to the same thing in substance,--that it was a question for the Supreme Court. I maintain that when he says, after the Supreme Court have decided the question, that the people may yet exclude slavery by any means whatever, he does virtually say that it is not a question for the Supreme Court. He shifts his ground. I appeal to you whether he did not say it was a question for the Supreme Court? Has not the Supreme Court decided that question? when he now says the people may exclude slavery, does he not make it a question for the people? Does he not virtually shift his ground and say that it is not a question for the Court, but for the people? This is a very simple proposition,--a very plain and naked one. It seems to me that there is no difficulty in deciding it. In a variety of ways he said that it was a question for the Supreme Court. He did not stop then to tell us that, whatever the Supreme Court decides, the people can by withholding necessary "police regulations" keep slavery out. He did not make any such answer I submit to you now whether the new state of the case has not induced the Judge to sheer away from his original ground. Would not this be the impression of every fair-minded man?

I hold that the proposition that slavery cannot enter a new country without police regulations is historically false. It is not true at all. I hold that the history of this country shows that the institution of slavery was originally planted upon this continent without these "police regulations," which the Judge now thinks necessary for the actual establishment of it. Not only so, but is there not another fact: how came this Dred Scott decision to be made? It was made upon the case of a negro being taken and actually held in slavery in Minnesota Territory, claiming his freedom because the Act of Congress prohibited his being so held there. Will the Judge pretend that Dred Scott was not held there without police regulations? There is at least one matter of record as to his having been held in slavery in the Territory, not only without police regulations, but in the teeth of Congressional legislation supposed to be valid at the time. This shows that there is vigor enough in slavery to plant itself in a new country even against unfriendly legislation. It takes not only law, but the enforcement of law to keep it out. That is the history of this country upon the subject.

I wish to ask one other question. It being understood that the Constitution of the United States guarantees property in slaves in the Territories, if there is any infringement of the right of that property, would not the United States courts, organized for the government of the Territory, apply such remedy as might be necessary in that case? It is a maxim held by the courts that there is no wrong without its remedy; and the courts have a remedy for whatever is acknowledged and treated as a wrong.

Again: I will ask you, my friends, if you were elected members of the Legislature, what would be the first thing you would have to do before entering upon your duties? Swear to support the Constitution of the United States. Suppose you believe, as Judge Douglas does, that the Constitution of the United States guarantees to your neighbor

the right to hold slaves in that Territory; that they are his property: how can you clear your oaths unless you give him such legislation as is necessary to enable him to enjoy that property? What do you understand by supporting the Constitution of a State, or of the United States? Is it not to give such constitutional helps to the rights established by that Constitution as may be practically needed? Can you, if you swear to support the Constitution, and believe that the Constitution establishes a right, clear your oath, without giving it support? Do you support the Constitution if, knowing or believing there is a right established under it which needs specific legislation, you withhold that legislation? Do you not violate and disregard your oath? I can conceive of nothing plainer in the world. There can be nothing in the words "support the Constitution," if you may run counter to it by refusing support to any right established under the Constitution. And what I say here will hold with still more force against the Judge's doctrine of "unfriendly legislation." How could you, having sworn to support the Constitution, and believing it guaranteed the right to hold slaves in the Territories, assist in legislation intended to defeat that right? That would be violating your own view of the Constitution. Not only so, but if you were to do so, how long would it take the courts to hold your votes unconstitutional and void? Not a moment.

Lastly, I would ask: Is not Congress itself under obligation to give legislative support to any right that is established under the United States Constitution? I repeat the question: Is not Congress itself bound to give legislative support to any right that is established in the United States Constitution? A member of Congress swears to support the Constitution of the United States: and if he sees a right established by that Constitution which needs specific legislative protection, can he clear his oath without giving that protection? Let me ask you why many of us who are opposed to slavery upon principle give our acquiescence to a Fugitive Slave law? Why do we hold ourselves under obligations to pass such a law, and abide by it when it is passed? Because the Constitution makes provision that the owners of slaves shall have the right to reclaim them. It gives the right to reclaim slaves; and that right is, as Judge Douglas says, a barren right, unless there is legislation that will enforce it.

The mere declaration, "No person held to service or labor in one State under the laws thereof, escaping into another, shall in consequence of any law or regulation therein be discharged from such service or labor, but shall be delivered up on claim of the party to whom such service or labor may be due," is powerless without specific legislation to enforce it. Now, on what ground would a member of Congress, who is opposed to slavery in the abstract, vote for a Fugitive law, as I would deem it my duty to do? Because there is a constitutional right which needs legislation to enforce it. And although it is distasteful to me, I have sworn to support the Constitution; and having so sworn, I cannot conceive that I do support it if I withhold from that right any necessary legislation to make it practical. And if that is true in regard to a Fugitive Slave law, is the right to have fugitive slaves reclaimed any better fixed in the Constitution than the right to hold slaves in the Territories? For this decision is a just exposition of the Constitution, as Judge Douglas thinks. Is the one right any better than the other? Is there any man who, while a member of Congress, would give support to the one any more than the other? If I wished to refuse to give legislative

support to slave property in the Territories, if a member of Congress, I could not do it, holding the view that the Constitution establishes that right. If I did it at all, it would be because I deny that this decision properly construes the Constitution. But if I acknowledge, with Judge Douglas, that this decision properly construes the Constitution, I cannot conceive that I would be less than a perjured man if I should refuse in Congress to give such protection to that property as in its nature it needed.

At the end of what I have said here I propose to give the Judge my fifth interrogatory, which he may take and answer at his leisure. My fifth interrogatory is this:

If the slaveholding citizens of a United States Territory should need and demand Congressional legislation for the protection of their slave property in such Territory, would you, as a member of Congress, vote for or against such legislation?

[Judge DOUGLAS: Will you repeat that? I want to answer that question.]

If the slaveholding citizens of a United States Territory should need and demand Congressional legislation for the protection of their slave property in such Territory, would you, as a member of Congress, vote for or against such legislation?

I am aware that in some of the speeches Judge Douglas has made, he has spoken as if he did not know or think that the Supreme Court had decided that a Territorial Legislature cannot exclude slavery. Precisely what the Judge would say upon the subject--whether he would say definitely that he does not understand they have so decided, or whether he would say he does understand that the court have so decided,--I do not know; but I know that in his speech at Springfield he spoke of it as a thing they had not decided yet; and in his answer to me at Freeport, he spoke of it, so far, again, as I can comprehend it, as a thing that had not yet been decided. Now, I hold that if the Judge does entertain that view, I think that he is not mistaken in so far as it can be said that the court has not decided anything save the mere question of jurisdiction. I know the legal arguments that can be made,--that after a court has decided that it cannot take jurisdiction in a case, it then has decided all that is before it, and that is the end of it. A plausible argument can be made in favor of that proposition; but I know that Judge Douglas has said in one of his speeches that the court went forward, like honest men as they were, and decided all the points in the case. If any points are really extra-judicially decided, because not necessarily before them, then this one as to the power of the Territorial Legislature, to exclude slavery is one of them, as also the one that the Missouri Compromise was null and void. They are both extra-judicial, or neither is, according as the court held that they had no jurisdiction in the case between the parties, because of want of capacity of one party to maintain a suit in that court. I want, if I have sufficient time, to show that the court did pass its opinion; but that is the only thing actually done in the case. If they did not decide, they showed what they were ready to decide whenever the matter was before them. What is that opinion? After having argued that Congress had no power to pass a law excluding slavery from a United States Territory, they then used language to this effect: That inasmuch as Congress itself could not exercise such a power, it followed as a matter of course that it could not authorize a Territorial government to

exercise it; for the Territorial Legislature can do no more than Congress could do. Thus it expressed its opinion emphatically against the power of a Territorial Legislature to exclude slavery, leaving us in just as little doubt on that point as upon any other point they really decided.

Now, my fellow-citizens, I will detain you only a little while longer; my time is nearly out. I find a report of a speech made by Judge Douglas at Joliet, since we last met at Freeport,--published, I believe, in the Missouri Republican, on the 9th of this month, in which Judge Douglas says:

"You know at Ottawa I read this platform, and asked him if he concurred in each and all of the principles set forth in it. He would not answer these questions. At last I said frankly, I wish you to answer them, because when I get them up here where the color of your principles are a little darker than in Egypt, I intend to trot you down to Jonesboro. The very notice that I was going to take him down to Egypt made him tremble in his knees so that he had to be carried from the platform. He laid up seven days, and in the meantime held a consultation with his political physicians; they had Lovejoy and Farnsworth and all the leaders of the Abolition party, they consulted it all over, and at last Lincoln came to the conclusion that he would answer, so he came up to Freeport last Friday."

Now, that statement altogether furnishes a subject for philosophical contemplation. I have been treating it in that way, and I have really come to the conclusion that I can explain it in no other way than by believing the Judge is crazy. If he was in his right mind I cannot conceive how he would have risked disgusting the four or five thousand of his own friends who stood there and knew, as to my having been carried from the platform, that there was not a word of truth in it.

[Judge DOUGLAS: Did n't they carry you off?]

There that question illustrates the character of this man Douglas exactly. He smiles now, and says, "Did n't they carry you off?" but he said then "he had to be carried off"; and he said it to convince the country that he had so completely broken me down by his speech that I had to be carried away. Now he seeks to dodge it, and asks, "Did n't they carry you off?" Yes, they did. But, Judge Douglas, why didn't you tell the truth? I would like to know why you did n't tell the truth about it. And then again "He laid up seven days." He put this in print for the people of the country to read as a serious document. I think if he had been in his sober senses he would not have risked that barefacedness in the presence of thousands of his own friends who knew that I made speeches within six of the seven days at Henry, Marshall County, Augusta, Hancock County, and Macomb, McDonough County, including all the necessary travel to meet him again at Freeport at the end of the six days. Now I say there is no charitable way to look at that statement, except to conclude that he is actually crazy. There is another thing in that statement that alarmed me very greatly as he states it, that he was going to "trot me down to Egypt." Thereby he would have you infer that I would not come to Egypt unless he forced me--that I could not be got here unless he, giant-like, had hauled me down here. That statement he makes, too, in the teeth of the knowledge that I had made the stipulation to come down here and

that he himself had been very reluctant to enter into the stipulation. More than all this: Judge Douglas, when he made that statement, must have been crazy and wholly out of his sober senses, or else he would have known that when he got me down here, that promise--that windy promise--of his powers to annihilate me, would n't amount to anything. Now, how little do I look like being carried away trembling? Let the Judge go on; and after he is done with his half-hour, I want you all, if I can't go home myself, to let me stay and rot here; and if anything happens to the Judge, if I cannot carry him to the hotel and put him to bed, let me stay here and rot. I say, then, here is something extraordinary in this statement. I ask you if you know any other living man who would make such a statement? I will ask my friend Casey, over there, if he would do such a thing? Would he send that out and have his men take it as the truth? Did the Judge talk of trotting me down to Egypt to scare me to death? Why, I know this people better than he does. I was raised just a little east of here. I am a part of this people. But the Judge was raised farther north, and perhaps he has some horrid idea of what this people might be induced to do. But really I have talked about this matter perhaps longer than I ought, for it is no great thing; and yet the smallest are often the most difficult things to deal with. The Judge has set about seriously trying to make the impression that when we meet at different places I am literally in his clutches--that I am a poor, helpless, decrepit mouse, and that I can do nothing at all. This is one of the ways he has taken to create that impression. I don't know any other way to meet it except this. I don't want to quarrel with him--to call him a liar; but when I come square up to him I don't know what else to call him if I must tell the truth out. I want to be at peace, and reserve all my fighting powers for necessary occasions. My time now is very nearly out, and I give up the trifle that is left to the Judge, to let him set my knees trembling again, if he can. set my knees trembling again, if he can.